

IN THE LABOUR COURT OF SOUTH AFRICA

HELD AT CAPE TOWN

CASE NO: [To be assigned]

In the matter between:

Wilbur William Matthee

Applicant

and

Medscheme Holdings (a Division of Afrocentric Health (Pty) Ltd)

Respondent

FOUNDING AFFIDAVIT

I, WILBUR WILLIAM MATTHEE, do hereby make oath and state:

1. INTRODUCTION

1.1

I am the Applicant in this matter, an adult male, formerly employed by the Respondent in the capacity of Case Manager (Health Services Management Nurse Specialist) within the GEMS Active Disease Risk Management Unit, Cape Town. Medscheme Holdings Proprietary Limited (Registration Number: 1970/015014/07)[a Division of Afrocentric Health Pty Ltd], 37 Conrad Street Florida North Roodepoort 1709 South Africa,

1.2.

I am a qualified and motivated Nurse Specialist with a career dedicated to providing exemplary and compassionate care across diverse healthcare settings in South Africa.

1.3.

My formal academic qualifications and professional designations include:

- Postgraduate Diploma in Health Services Management (HSM (PgDip)) from the Cape Peninsula University of Technology.
- Bachelor of Technology in Nursing (BTech Gen Pn), with registered competencies in Psychiatry, Midwifery, and Community Nursing (R425).
- Acceptance for postgraduate studies in Occupational Health Nursing commencing in 2026.

1.4.

Over the course of my 15-year academic and clinical career, I have developed specialist expertise in the following critical areas:

- **Chronic Disease & Risk Management:** In my role with the Respondent, I was responsible for outcomes-based disease management and proactive risk management, ensuring treatment adherence and healthcare compliance for members of the Government Employees Medical Scheme (GEMS).
- **Emergency and Critical Care:** I have extensive experience as a Shift Lead in high-pressure Emergency Departments, where I stabilized critically ill patients, managed resuscitation protocols (including ECGs and blood gases), and supervised multidisciplinary teams.

- **Clinical Governance and Quality Improvement:** I have a proven track record of ensuring adherence to healthcare standards and contributed to the Post Graduate Quality Desk in 2022.
- **Primary Healthcare and Community Health:** My experience includes managing commercially viable clinics, conducting “Well Baby” and reproductive health services, and delivering specialized palliative care.

1.5.

My professional standing is further evidenced by a 2019 *Excellence in Customer Service Award* from Mitchell’s Plain District Hospital. Senior medical colleagues have consistently commended my ability to identify critically ill patients, my depth of clinical knowledge, and my exceptional skill in de-escalating heated situations while safeguarding the dignity and autonomy of patients and their families.

1.6.

This professional background is central to the present matter. The protected disclosures I made were not speculative or incidental, but were firmly rooted in my specialist knowledge of healthcare standards, patient safety, and the clinical realities of chronic disease management. [*\(Refer to Annexure RESU1\)*](#)

1.7.

At the time of my dismissal, I was awaiting a formal response from the Respondent regarding my application to pursue postgraduate studies in Occupational Health Nursing in 2026. Immediately after submitting the final documents in support of this academic progression, the retaliation and victimisation against me escalated dramatically. This sequence of events demonstrates that my dismissal was not only procedurally unfair but also substantively linked to my disclosures and professional advancement, thereby constituting unlawful retaliation. [*\(Refer to CPUT1\)*](#)

1.8.

I am currently self-represented due to being rendered destitute by the Respondent’s actions, which have left me homeless and unable to afford legal representation. Termination date [12/12/2025] [*\(Refer to RES1\)*](#)

1.9

The facts contained in this affidavit are, to the best of my knowledge and belief, both true and correct. Where I make submissions of a legal nature, I do so based on advice received and my understanding of the relevant legislation.

1.10

This affidavit is accompanied by documents marked “Annexures A1–L8,” to which I shall refer throughout. These documents are authentic and have either been generated by me, addressed to me, or form part of the Respondent’s official records. [medical reports, emails, video recording transcript.

2. BACKGROUND AND EMPLOYMENT

2.1.

I commenced employment with the Respondent on **1 May 2024**. My final position was **Case Manager**, remunerated at a **Cost to Company (CTC) of R42,796.13 per month**. ([*Refer to Annexure ANI1*](#))

2.2.

In this capacity, I was entrusted with responsibilities central to the Respondent’s operations, which included:

- Implementing **outcomes-based disease management programs**;
- Conducting **active disease risk management to mitigate health risks** among members;
- Ensuring strict compliance with **healthcare protocols and industry standards**;
- Delivering these services specifically for members of the **Government Employees Medical Scheme (GEMS)**, thereby safeguarding both patient welfare and organizational integrity.

2.3. PROFESSIONAL LEADERSHIP AND CLINICAL GOVERNANCE CONTRIBUTIONS

2.3.1

During my tenure, my professional value to the Respondent was formally recognized through my nomination and service as a First Aider and as Acting Chairperson of the Employee Health and Safety (EHS) Committee. In this role, I exercised fiduciary-like oversight over clinical safety and psychosocial risks, ensuring compliance with workplace health standards.

2.3.2

In April 2025, I identified a critical failure in the Respondent's management of mandatory Continuous Professional Development (CPD) obligations. To address this, I authored a specialized proposal for compliance with **SANC Regulation 1569**, designed to safeguard professional relevance and regulatory adherence.

2.3.3

My proposal recommended a digitized integration with EMguidance courses, enabling all business units and clinical staff to remain professionally current. This initiative would have saved the Respondent significant training costs while reducing the administrative burden on front-line nurses.

2.3.4

Despite its clear value, my then-manager, Ms. Jones, formally notified me that the initiative was "declined" on the instructions of the Operational Manager, Ms. Nthabiseng.

2.3.5

In an act of institutional bad faith, the Respondent subsequently implemented this exact model across the business unit in October 2025, without acknowledgment of my authorship or contribution.

2.3.6

Although my plan became a core operational standard, I was denied recognition. I further resubmitted the "GEMS Listen2Learn" site idea, which was positively received by Susan from the General Manager's office. However, when I sought to reclaim my intellectual property and formalize collaboration, the Respondent's hostile conduct prevented me from fulfilling

engagement with the Head of Training. (Refer to [Annexure CPD1 – Proposal for CPD Compliance and EMguidance Integration](#))

3. CHRONOLOGY OF PROTECTED DISCLOSURES AND RETALIATION

3.1 MARCH 2025: INITIAL THREAT AND DISCLOSURE

3.1.1.

On **6 March 2025**, during a Microsoft Teams communication with the Applicant's then-manager, Ms Jones, the Applicant raised concerns regarding the existence of **duplicate "LACE" files**. The Applicant expressed the view that maintaining such duplicate files was unnecessarily time-consuming and diverted valuable time that could otherwise have been dedicated to contacting members. ([Refer to Annexure M1](#)).

3.1.2.

Prior to approaching the Applicant directly, **Ms Jones** was observed stalking the **Applicant from different conversations**, standing nearby and engaged with other individuals while monitoring the Applicant. She then approached the Applicant, initiated small talk regarding the Applicant's umbrella, and subsequently made a veiled threat, stating words to the effect: *"This is the second time you are questioning me; do not let it happen again."* Ms Jones then dismissively walked away. The Applicant contemporaneously documented this interaction in his notebook ([Refer to Annexure T1](#)).

3.2 MAY 2025: MEDICAL CRISIS AND FORMAL DISCLOSURE

3.2.1.

The Applicant experienced a **mental health crisis in the workplace**. Prior to this incident, the Applicant had been formally diagnosed by **Dr Jacques Malan**, a specialist psychiatrist, with **Severe Major Depressive Disorder and Post-Traumatic Stress Disorder (PTSD)**,

necessitating returning to inpatient psychiatric treatment as the Applicants at risk. ([Refer to MED1](#))

3.2.2.

Upon returning to work following discharge from the initial psychiatric care, the Applicant was informed by the Respondent that:

- “the company does not stagger debt”;
- “the company is not a loan company”;
- “you receive online orders weekly”; and
- “you won’t miss the chunk of money.”

([Refer to Annexure LIE1](#))

3.2.3.

On 7 May 2025, the Applicant was subjected to **medical victimization**. The Respondent elected to pursue the most **punitive administrative path**, namely placing the Applicant on **unpaid leave**, rather than adopting the **supportive path of reasonable accommodation**. This decision, taken as early as May 2025, evidences the Respondent’s approach of creating conditions that were **calculated to render the Applicant’s working environment intolerable over time**. ([Refer to Annexure MV1](#)).

3.2.4.

In May 2025, the Applicant scheduled a formal meeting with senior manager **Ms. Mashele**. During this meeting, the Applicant reported both derogatory comments made by **Ms. Jones** and the financial impact of the deductions imposed. In response, Ms. Mashele stated: *“I will personally apply for special leave; you should just provide the letter from the psychiatrist via email.”* ([Refer to Annexure MED1](#))

This exchange demonstrates that the Respondent was fully aware of the Applicant's psychiatric condition and the financial hardship caused by the deductions. Rather than addressing the underlying misconduct or exploring appropriate statutory remedies such as incapacity leave or reasonable accommodation, the Respondent offered a limited concession of "special leave," thereby failing to take adequate or lawful steps to protect the Applicant's rights.

Furthermore, in **October 2025**, Ms. Mashele, in her written response to the Applicant's email, referred to the Applicant's **gender identity** as a "typo" and asserted that the Applicant and Ms. Jones had "never had any previous problem." This dismissive and inaccurate statement illustrates the Respondent's ongoing minimisation of the Applicant's discrimination complaints, its refusal to acknowledge the seriousness of the derogatory conduct, and its attempt to erase the Applicant's lived experience. ([Refer to Annexure TYPO](#))

3.2.5.

The Respondent's **refusal** to provide **reasonable accommodation**, despite being fully aware of the Applicant's documented psychiatric condition, demonstrates a clear disregard for medical necessity and workplace fairness. This omission is not only inconsistent with the principles of equity and care expected of an employer, but also reinforces the Applicant's claim of constructive unfair treatment, as the Respondent's conduct contributed directly to an intolerable working environment.

3.2.6.

On **16 May 2025**, a formal medical report authored by **Dr Jacques Malan** was provided to **Ms Mashele** via email. The Employer issued *no acknowledgement of receipt*, nor were any reasonable steps taken in respect of **Ms Jones** following disclosure of the allegations brought against her. ([Refer to Annexure EM1](#)).

3.2.7.

On or about **20 May 2025**, the Applicant reports that the Employer penalized an employee who experienced a sudden medical emergency in the workplace. The Employer compelled this employee to take **unpaid leave** for the period required to obtain urgent medication. ([Refer to Annexure BDC1](#))

3.2.8.

Such conduct constitutes a **breach of the Employer's statutory duty of care** under the **Basic Conditions of Employment Act 75 of 1997** and the **Occupational Health and Safety Act 85 of 1993**, which require employers to ensure the health and safety of employees. The Applicant contends that this action amounts to an **unfair labour practice**. ([Refer to Annexure BDC1](#)).

3.2.9.

On **21 May 2025**, evidence of the Respondent's **rigid and punitive management** emerged. In response to the Applicant not returning to the office as planned, **Ms. Jones** issued what became known as the "*Oracle Instruction*", directing the Applicant to "*load unpaid leave.*" Notably, there was **no reference to alternative measures** such as working back the time, sick leave, or compassionate adjustment.

This demonstrates that the Respondent's **Absence Management Policy** was applied in a manner that disregarded the human and clinical realities of the Applicant's medical condition. By May 2025, the Applicant was already being **subjected to financial victimization**, establishing that the subsequent **40% salary cuts** later in the year were not administrative "errors" but the culmination of a deliberate strategy initiated through repetitive "unpaid leave" instructions.

The Respondent's use of administrative policies to financially penalize the Applicant for medical vulnerabilities created a baseline of **institutional hostility**, which in turn heightened the risk associated with the applicants later whistleblowing activities. ([Refer to Annexure RPM1](#)).

3.2.10.

On 21 May 2025, the Applicant experienced a psychiatric crisis. This incident was subsequently disclosed to Ms Jones via Team Leader Gajaad after having a conversation with her the morning of the 22nd May 2025. Following disclosure, the Applicant was instructed to leave the premises immediately and obtain psychiatric care by Ms Jones admitted to facility on the 23rd May 2025.

This disclosure placed the Respondent on direct notice of the seriousness of the Applicant's condition. Despite this, the Respondent failed to take reasonable steps to provide accommodation or support, and instead continued to apply punitive measures, thereby aggravating the Applicant's vulnerability. *(Refer to Section 11)*

3.2.11.

The Respondent's repeated reliance on **punitive leave instructions**, despite full knowledge of the Applicant's medical vulnerabilities, reflects a **calculated disregard for statutory obligations and workplace fairness**. This pattern of conduct demonstrates that the Respondent was not merely applying administrative policy, but was actively creating conditions of **institutional hostility**.

Such hostility, compounded by the Respondent's awareness of the Applicant's psychiatric vulnerability, forms the foundation of the Applicant's claim of constructive dismissal, as the cumulative effect of these actions rendered the working environment intolerable.

3.3 JUNE 2025: ABSENCE MANAGEMENT REVIEW

3.3.1.

On **23 June 2025**, the Respondent deducted R177.12 from the Applicant's remuneration in respect of **Unemployment Insurance Fund (UIF)** contributions. Despite effecting this deduction, the Respondent failed to declare or remit the amount to the Fund by the statutory deadline of 7 July 2025, thereby acting in violation of the **Unemployment Insurance Contributions Act**. (*Refer to Annexure PS1*).

3.3.2.

On **24 June 2025**, during an **Absence Management Review**, the Respondent's handling of the Applicant's leave demonstrated a punitive and unlawful approach. Although the Applicant's absence occurred in **May/June 2025**, the Respondent imposed a **40%+ deduction in July**, effectively "bunching" all unpaid days into a single pay cycle rather than staggering them.

Under the Basic Conditions of Employment Act (BCEA), an employer is generally prohibited from deducting more than 25% of an **employee's remuneration** for debt or overpayments. By loading the "difference" (9 days) all at once, the Respondent knowingly plunged the Applicant into a financial crisis.

- **Punitive intent:** In the context of the Applicant's recent psychiatric admission, this was not an administrative oversight but a deliberate punitive measure. The Respondent was aware that the Applicant was running out of medication, yet imposed the deduction in a manner that ensured he remained in a state of crisis.

- **Managerial tone:** Ms. Mary-Ann Jones explicitly stated: "Leave accumulate at 1.25 days per month... please do your best [to manage]." While lecturing the Applicant on leave accumulation, she simultaneously prepared to deduct nearly half of his salary.

- **Failure to incapacity leave:** As a Specialist Nurse with a motivated psychiatric admission, the Applicant's **19 days of absence** should have been covered by incapacity leave. Instead, the Respondent "granted" 10 days of special leave to create a narrative of being "helpful," while

unlawfully or unfairly forcing the remaining 9 days as **unpaid leave**. This approach ignored incapacity benefits and reasonable accommodation.

This conduct illustrates the Respondent's use of administrative mechanisms to financially victimize the Applicant, masking punitive measures under the guise of policy compliance.

(Refer to Annexure AMR1).

3.4 JULY 2025: UNLAWFUL FINANCIAL SABOTAGE

3.4.1.

On **8 July 2025**, the Respondent was in **statutory non-compliance** with the **Unemployment Insurance Contributions Act (Act 4 of 2002)**. The Applicant's **uFiling record** confirms that while contributions for **March, April, and May 2025** were duly declared, the contribution for **June 2025** remains marked as "*No Information.*"

This failure deprived the Applicant of access to the **social security safety net** guaranteed under the Act, thereby compounding the financial and medical vulnerabilities already created by the Respondent's punitive absence management practices. *(Refer to Annexure SCR0).*

3.4.2.

On **14 July 2025**. The Respondent approved the request but explicitly **capped it at 10 days**. In an email, **Ms. Jones** stated: "*The difference in the days when the Applicant were absent from work will be unpaid leave.*" She further noted that she was "*waiting on a correction*" and would "*consult payroll to ensure dates is loaded... before next paydate.*"

This correspondence demonstrates that the subsequent deduction **was not a system error**, but a **manual, calculated entry** made immediately prior to the July pay run. The Respondent deliberately chose to load the unpaid leave in a single cycle rather than allowing the Applicant to stagger the debt or utilize other leave types, thereby causing a sudden **financial shock**.

Under the **Employment Equity Act**, where absence arises from a **mental health admission (disability/medical condition)**, the employer has a duty to explore measures to **mitigate financial impact**. Instead of considering further special leave, sick leave pooling, or

administrative leniency, the Respondent applied a rigid “**no work, no pay**” principle to all days beyond the 10-day cap.

The granting of 10 days’ special leave functioned as a **distraction**, creating the appearance of support while simultaneously enabling the Respondent to process an **unlimited amount of unpaid leave** for the remainder of the Applicant’s absence. This conduct illustrates a deliberate strategy of **financial victimization** under the guise of policy compliance. ([Refer to Annexure SLR1](#)).

3.4.3.

On 23 July 2025, the Applicant received his payslip reflecting a gross salary of R36,588.81. The Respondent had effected the following unlawful deductions:

Unpaid Leave Recovery: R13,824.32

Unpaid Leave: R987.45

Total Specific Deduction: R14,811.77

([Refer to Annexure PS2](#))

3.4.4.

This amounted to **40.47% of the Applicant’s gross salary** being withheld in a single month. The Applicant’s net pay was reduced to **R15,679.29**. ([Refer to Annexure PS2](#)).

3.4.5.

This deduction was made:

- a) **Without the Applicant's prior written consent**, as required by **Section 34(1) of the Basic Conditions of Employment Act (BCEA)**.
- b) While the Applicant was under **active psychiatric care for a disability**, demonstrating a failure to provide **reasonable accommodation**. ([Refer to Annexure MED1](#)).
- c) Despite the Applicant's request for a **staggered repayment plan** due to financial vulnerability.
- d) In contradiction of managerial assurances, as evidenced by an email in which the manager misrepresented the possibility of staggering the debt. ([Refer to Annexure LIE1](#)).

3.4.6.

On **24 July 2025**, the day after the unlawful deduction, in a Teams conversation **Ms. Jones** shared a snippet of company policy which explicitly stated: "*Deductions must not be more than 25% of the employee's CTC as per legislation.*" When the Applicant pointed out that the Respondent's conduct breached both its own policy and the BCEA, Ms. Jones replied dismissively: "*What is illegal.*"

This exchange demonstrates both **knowledge of the illegality** and **malicious intent**, as the Respondent knowingly disregarded statutory limits and internal policy safeguards. ([Refer to Annexure POL1](#)).

3.4.7.

The Respondent's deliberate breach of statutory deduction limits, coupled with its dismissive response when confronted, demonstrates a **calculated strategy of financial sabotage**. By knowingly withholding more than 40% of the Applicant's gross salary in a single month, without consent and in direct violation of both the **Basic Conditions of Employment Act** and its own internal policy, the Respondent aggravated the Applicant's financial and medical

vulnerability. This conduct evidences **malicious intent** and forms part of a broader pattern of **institutional hostility**, thereby reinforcing the Applicant's claim that the working environment was deliberately rendered intolerable and amounts to **constructive dismissal**.

3.5 AUGUST 2025: MEDICAL VULNERABILITY

3.5.1.

On **13 August 2025**, line manager **Ms. Shantal Govender** provided an **objective, third-party account** of the Applicant's medical crisis. Ms. Govender recorded that the Applicant was experiencing **severe withdrawal symptoms**, to the extent that a colleague, Ms. Lebo, had to physically assist the Applicant in reaching the pharmacy.

This constitutes a **documented report of a medical emergency occurring in the workplace**, evidencing that the Applicant's health was actively deteriorating and that the Respondent's management team was fully aware of the severity of the Applicant's condition. ([*Refer to Annexure WNW1*](#)).

3.5.2.

On **15 August 2025**, Ms. Jones's response to the Applicant's medical crisis continued the theme of **institutional hostility**. She framed the Applicant's ability to obtain emergency medication as a mere "*concession*," immediately followed by a warning that the Applicant must be "*fair towards the whole team*." Ms. Jones instructed the Applicant to add the time for his "*late coming*" to his "*total time owed*."

In the context of an employee suffering **severe withdrawal symptoms**, this rigid insistence on "departmental adherence policy" constitutes a failure to provide **reasonable accommodation**. Under the **Employment Equity Act**, an employer must accommodate an employee's disability or illness unless such accommodation causes **undue hardship**. Insisting that a nurse in financial distress and in a medical crisis "work back the time" the following day was punitive, not accommodative.

Ms. Jones further admitted she understood the impact of her actions — including **financial ruin and lack of medication** — yet knowingly continued conduct that was destroying the Applicant’s health. In South African labour law, when an employer is aware that their actions are causing severe harm (physical or psychological) and persists without mitigation, this constitutes **evidence of malice**.

The Respondent’s reliance on rigid “Oracle” time-policing and punitive unpaid leave policies, despite full knowledge of the Applicant’s medical crisis, breached its statutory duty of care under the **Occupational Health and Safety Act**, which requires employers to provide a safe working environment.

By acknowledging the Applicant’s medical crisis yet refusing to adjust deductions or provide accommodation, the Respondent created an **intolerable environment**. A workplace where a manager admits the employee cannot afford life-sustaining medication but continues to threaten with “insubordination” is, by definition, a place where no reasonable employee can be expected to remain. (*[Refer to Annexure WNW2](#)*).

3.5.3.

The Respondent’s conduct during August 2025 demonstrates that even when confronted with clear, documented evidence of the Applicant’s medical crisis, management chose **consistency over compassion**. By framing emergency access to medication as a “concession,” insisting on rigid time-policing, and continuing punitive deductions despite full knowledge of the Applicant’s psychiatric vulnerability, the Respondent breached its statutory duty of care under both the **Employment Equity Act and the Occupational Health and Safety Act**.

This deliberate disregard for the Applicant’s health and financial stability illustrates a broader pattern of **institutional hostility**, where administrative rules were weaponized against a medically vulnerable employee. The cumulative effect of these actions rendered the workplace **intolerable**, thereby reinforcing the Applicant’s claim of constructive dismissal.

3.6. SEPTEMBER 2025: GENDER IDENTITY DISCRIMINATION

3.6.1.

In **early September 2025**, the Applicant submitted his **final and complete application**, together with an **acceptance letter**, to commence studies in **2026 for the Postgraduate Diploma in Occupational Health Nursing (PGDip OHN)**. Following this submission, the pressure on the Applicant increased significantly. Despite the completeness of the application, the Applicant never received a final response from the Respondent. *(Refer Section 11)*

This omission, in the context of the Applicant's gender identity and ongoing workplace hostility, demonstrates an **intent to obstruct the Applicant's professional growth and advancement**. By withholding a final answer, the Respondent effectively sought to strip the Applicant of opportunities for career development, reinforcing the broader pattern of **discrimination and institutional hostility**. *(Refer Annexure CPUT1)*

3.6.2.

On **23 September 2025**, in a team-wide Microsoft Teams chat, **Ms. Jones** intentionally misgendered the Applicant by referring to him as "**Wilma**" despite his correct name being "**Wilbur**." Ms. Jones is not known to make clerical errors, and the deliberate nature of this misidentification underscores its discriminatory intent.

This incident constitutes a clear act of **gender identity discrimination**, carried out publicly in front of colleagues, thereby undermining the Applicant's dignity and reinforcing the hostile environment. The Respondent's failure to prevent or correct such conduct demonstrates complicity in fostering an intolerable workplace. *(Refer to Annexure SCR1)*.

3.6.3.

On **25 September 2025**, the Applicant reported the incident of misgendering as a **violation of dignity** to the operational manager, **Ms. Nthabiseng Nkatane**, who is Ms. Jones's direct manager. In response, Ms. Nkatane issued an email instructing Ms. Jones to meet with the

Applicant **one-on-one** regarding the matter and, thereafter, to provide Ms. Nkatane with **feedback on the outcomes** of the meeting.

This sequence of events demonstrates that the Respondent's management was formally placed on notice of the discriminatory conduct and acknowledged its seriousness by directing remedial engagement. However, the **responsibility was delegated back to the perpetrator** of the discrimination, thereby undermining the Applicant's trust in the process and failing to provide an impartial or protective mechanism. ([Refer to Annexure ONE1](#)).

3.6.4.

On **25 September 2025**, the Applicant felt **unsafe** regarding the directive issued by **Ms. Nthabiseng Nkatane** and escalated the matter to **HCBP Cheryl** as well as to the union. Instead of providing independent intervention or protective measures, the HCBP referred the case **back to the department** — effectively returning the matter to the same management structure implicated in the discriminatory conduct.

This response demonstrates the Respondent's failure to provide an impartial or protective mechanism for addressing **gender identity discrimination**. By recycling the complaint back to the department, the Respondent undermined the Applicant's trust in internal remedies and reinforced the perception of an **intolerable environment** where dignity violations were minimized rather than remedied. ([Refer to Annexure FR1](#)).

3.6.5.

On **29 September 2025**, **Ms. Jones** processed a **double punitive unpaid leave entry** against the Applicant for **25 September 2025**. This action was taken immediately after the Applicant lodged a formal complaint regarding misgendering and constituted an act of **retaliation**.

The deduction was not the result of administrative error but a deliberate punitive measure, directly linked to the Applicant's protected activity of reporting a dignity violation. Such retaliation contravenes the principles of **fair labour practice** and demonstrates the Respondent's willingness to weaponize payroll systems against the Applicant.

This conduct further entrenches the pattern of **institutional hostility**, where discriminatory acts were compounded by financial victimization, thereby reinforcing the Applicant's claim that the workplace had become intolerable. (*Refer to Annexure ULP1*).

3.6.6.

The Respondent's handling of the Applicant's gender identity concerns — from obstructing professional growth opportunities, to deliberate misgendering in a public forum, to ineffective escalation processes, and finally to retaliatory punitive deductions — demonstrates a sustained pattern of **discrimination and hostility**. Instead of providing impartial remedies or protective measures, management either minimized the violations or returned the matter to the same structures implicated in the misconduct.

This conduct reflects a **systemic failure to uphold dignity and equality in the workplace**, as required under the **Employment Equity Act** and the Constitution of the Republic of South Africa. By knowingly permitting and perpetuating acts of gender identity discrimination, the Respondent aggravated the Applicant's vulnerability and reinforced the perception of an **intolerable environment**.

The cumulative effect of these actions forms a critical component of the Applicant's claim of **constructive dismissal**, as no reasonable employee could be expected to remain in a workplace where their identity is undermined, their dignity violated, and retaliation is used to silence formal complaints.

3.7. OCTOBER 2025: DISCLOSURE OF SYSTEMIC PATIENT HARM

3.7.1.

On **01 October 2025**, Ms. Mashele instructed Ms. Jones to remove the **punitive double unpaid leave entry** that had been loaded against the Applicant on **29 September 2025**.

This directive confirms that the deduction was not the result of a system error but a **deliberate, discretionary act** by management. The subsequent removal illustrates that the Respondent had full control over payroll entries and could reverse them at will, thereby

exposing the extent to which such deductions were used as a tool of retaliation and financial victimization.

The incident demonstrates both the **arbitrary nature of the Respondent's payroll practices** and the lack of procedural safeguards to protect employees from retaliatory conduct. ([Refer to Annexure TYP1](#)).

3.7.2.

On **06 October 2025**, **Ms. Jones** adopted a **hostile tone** and engaged in **victimisation** of the Applicant. Instead of addressing the substantive issues raised, Ms. Jones criticized the Applicant's "*choosing of words*" and accused him of conveying an "*implied message*." She used the interaction to **lecture the Applicant on how to pose questions**, rather than constructively engaging with the concerns presented.

This conduct demonstrates that, following the Applicant's formal complaint of **25 September 2025**, Ms. Jones ceased to act as a supportive supervisor and instead positioned herself as an **adversary**. The shift in tone and approach reflects a deliberate strategy of hostility, undermining the Applicant's ability to raise legitimate concerns without fear of reprisal

Such behaviour constitutes **victimisation** under the **Employment Equity Act**, as it arose directly from the Applicant exercising his right to report discrimination and workplace misconduct. It further evidences the Respondent's broader pattern of silencing disclosures and discouraging accountability. ([Refer to Annexure HTV1](#)).

3.7.3.

On **23 October 2025**, the Applicant was instructed to investigate a case. During the investigation, the Applicant escalated via email to **Ms. Jones** a **critical systems failure**: the **Gexus** and **DMS** platforms were not integrated, resulting in automated "*non-adherence*" letters being incorrectly sent to **GEMS members** who were, in fact, adherent to their treatment.

This integration gap posed a **direct risk of patient harm**, as members' profiles were falsely flagged as non-adherent to medication. The seriousness of the issue was underscored by a complaint from a member's daughter, who requested that the Respondent "*not confuse the old lady and to get your house in order and update your records.*"

Despite the Applicant's investigation and provision of evidence confirming the integration gap, **Ms. Jones instructed the Applicant to call the 75-year-old member to "gently probe" on adherence.** The Applicant's ethical refusal to carry out this instruction — which would have misled the member and disregarded the systemic error — was later labelled as **insubordination** during a recorded interaction between the Applicant and Ms. Jones.

This incident demonstrates the Respondent's **failure to address systemic patient safety risks** and its willingness to reframe ethical conduct as misconduct. Such behaviour not only undermines professional integrity but also reinforces the Applicant's claim of an **intolerable environment** where disclosures of systemic harm were met with hostility and retaliation. ([*Refer to Annexure G1*](#)).

3.7.4.

On **23 October 2025**, the Applicant's disclosure of the critical systems failure was **ignored by Ms. Jones.** Instead of addressing the risks identified, Ms. Jones escalated her pattern of victimisation, introducing **unilateral changes to the Applicant's schedule** and subjecting him to **specific unfair targeting.**

This conduct demonstrates that the Applicant's protected disclosure was met not with corrective action, but with retaliation. Such behaviour constitutes **occupational detriment** under the **Protected Disclosures Act**, as the Applicant was penalized for raising concerns about systemic patient harm.

3.7.5.

On **27 October 2025**, the Applicant acted in **good faith and transparency** by sending an email to **Ms Jones** at **3:03 PM**, admitting he had forgotten to CC her on an escalation to CNBR and offering to forward the details immediately. This demonstrates a professional employee

correcting a minor administrative oversight and ensuring that all relevant parties were informed.

Despite receiving this email, Ms Jones later sat in a meeting on **31 October 2025** (video transcript) and falsely claimed that the Applicant had escalated matters “*without us knowing what it’s about.*” When the Applicant responded, “*I informed you immediately after,*” Ms. Jones interjected, “*No, you didn’t.*” Instead of acknowledging the Applicant’s transparency, Ms. Jones ignored the apology and circulated **extracts from the Standard Operating Procedure (SOP)**, using the moment to lecture the Applicant on rules rather than address the substantive issue.

This conduct constitutes **performance entrapment**: a deliberate attempt to construct a narrative that the Applicant was “*not following process*” when, in fact, he was fulfilling his professional duty as a **Nurse Specialist** by ensuring a member’s program admission concern was addressed. Each time the Applicant engaged other departments (CNBR/Simphiwe) to resolve patient issues, Ms JONES reframed the action as “*undermining authority*” rather than “*serving the member.*”

The **email dated 27 October 2025** proves the Applicant was transparent and had proactively informed management of the referral. The Respondent’s denial and misrepresentation in the meeting of **31 October 2025** demonstrate bad faith and a deliberate attempt to create a pretext for disciplinary action. This evidences retaliation against the Applicant for disclosures made in the public interest and supports the claim of **constructive dismissal**. ([Refer to Annexure CNBR1](#)).

3.7.6

Selective Instruction to Return to Office

On the morning of **31 October 2025**, prior to the Applicant’s scheduled duty time, Ms. Jones contacted the Applicant directly and instructed him to return to the office the following week. This directive contradicted the previously agreed-upon pilot study arrangement, under which the Applicant was scheduled to work from home for the next two weeks.

The Applicant expressed shock and requested clarification, asking whether the pilot agreement had changed. Ms. Jones did not provide a clear explanation. In response, the Applicant raised the matter in the designated Teams group for pilot study participants, seeking to determine whether others had received similar instructions. ([Refer Annexure to Pilo1](#))

The responses from multiple colleagues confirmed that no such directive had been issued to other participants. The pilot study agreement had explicitly allowed participants to choose which two weeks they would work from home, and no changes had been communicated.

Upon seeing the Applicant's inquiry in the group chat, Ms. Jones reacted with a shocked facial expression, indicating that she had not anticipated the Applicant would seek peer confirmation. This reaction, coupled with the absence of similar instructions to other participants, confirms that the directive was selectively applied to the Applicant.

The Respondent retains the full Teams chat transcript and internal **communications** related to this incident, establishing the Applicant's claim of targeted treatment, deviation from agreed protocols, and retaliatory conduct. ([Refer to Annexure UNI1](#))

3.7.7.

On **31 October 2025**, the transcript of a video-recorded meeting between the Applicant and Ms. Jones provides one of the most powerful pieces of evidence in this matter — a rare, verbatim record of the **psychological retaliation and predatory management** directed at the Applicant.

The transcript contains an explicit **“Tit-for-Tat” admission of retaliation**, where Ms. Jones states: *“You made a case of harassment against me so I can make a case of harassment against you.”* This statement directly links her disciplinary intent to the Applicant's prior whistleblowing, thereby confirming retaliatory motive.

Ms. Jones repeatedly invoked *“insubordination”* in relation to the 75-year-old member case, while the transcript shows the Applicant attempting to explain the **clinical ethics** behind his decision. Her tone shifted from *managerial* to *condescending and parental*, repeatedly telling the Applicant to *“let me finish”* while dismissing factual evidence about the system error.

The transcript further reveals a **“Double-Bind” tactic**: Ms. Jones acknowledged the Applicant had a recording as proof, yet dismissed it by saying, *“You have the recording... if you need it,”* while refusing to acknowledge the facts the recording substantiated.

Her language escalated into implied threats, including the **“Ripple Effect” warning**: *“Think of your actions and the ripple effect of your actions at the end of the day.”* The Applicant reasonably interpreted this as a threat to his career. Ms. Jones also reframed the Applicant’s attempt to uphold nursing ethics as a personal mental or behavioural problem, stating: *“What’s happening is not healthy.”* This constitutes **gaslighting**, designed to make a whistleblower doubt his own reality.

Throughout the transcript, Ms. Jones focused on *“consensus”* and *“reporting”* only on her terms, accusing the Applicant of *“secrecy”* regarding the CNBR referral, despite documentary proof that he had attempted to CC her. This demonstrates she was actively searching for procedural slips to justify a disciplinary hearing.

This transcript transforms the Applicant’s suspicions into **documented fact**: the charge of *“insubordination”* was a manufactured label for whistleblowing. It evidences a manager who felt undermined by the truth and chose to weaponize the Respondent’s disciplinary power to silence the Applicant. ([Refer to Annexure T2](#)).

3.7.8.

The Respondent’s refusal to act on the disclosure of systemic patient harm, coupled with the intensification of victimisation, evidences a workplace where **truth was punished and misconduct concealed**. This pattern of retaliation created an **intolerable environment**, stripping the Applicant of trust in internal remedies and reinforcing the perception that management was intent on silencing whistleblowing rather than safeguarding patients.

The cumulative effect of these actions — ignored disclosures, retaliatory scheduling changes, and targeted hostility — forms a critical pillar of the Applicant’s claim of **constructive dismissal**, as no reasonable employee could be expected to remain in a workplace where ethical conduct and transparency are weaponized against them. ([Refer to Annexure VICT1](#)).

3.8. NOVEMBER 2025: EXHAUSTING INTERNAL REMEDIES

3.8.1.

On **02 November 2025**, the Applicant filed a **formal grievance** documenting “*Strategic Entrapment*,” “*Systematic Gaslighting*,” and the “*Threat of Counter-Complaints*.” In this grievance, the Applicant provided the employer with a clear warning that the workplace had become **intolerable**.

The grievance explicitly reported that **Ms. Jones** was “**building a false case**” against the **Applicant as retaliation**, thereby disclosing **Occupational Detriment** under the **Protected Disclosures Act (PDA)**. Section 3 of the PDA prohibits an employer from subjecting an employee to detriment for making a disclosure. Reporting that a manager is breaking the law by victimizing the Applicant is, itself, a **protected disclosure**.

The Applicant requested removal from Ms. Jones’s direct authority and demanded a **formal investigation into her malicious behaviour**. The employer’s 30-day silence in response to this grievance constitutes a **fatal error**. When an employer receives a grievance alleging *malicious intent* and *psychological harm* and fails to act, they are legally deemed to have **accepted the intolerable environment**. The Respondent had a **Duty of Care** to intervene, and their failure to do so is what renders the Applicant’s resignation **constructive**.

The grievance was signed with the Applicant’s full clinical credentials (**Nurse Specialist PGrad HSM, BTech Gen Pn**), underscoring that he is a qualified professional with a **statutory duty to report risks**. This reframes Ms. Jones’s “insubordination” comment as a non-specialist attempting to override the **clinical and ethical judgment of a Specialist Nurse**.

This document proves the Applicant did not “just quit.” He fought to remain, formally requested intervention, and gave the employer a chance to correct the situation. Their silence left him with no other choice but to escalate to **executive leadership on 04 December 2025**, as silence in such circumstances is often deemed an **admission of guilt**. ([Refer to Annexure FG2](#)).

3.8.2.

On **02 November 2025**, the Applicant had already drafted an **Impact Statement** detailing his fear, anxiety, and the **psychological toll** of the workplace hostility. The fact that the Applicant was too intimidated to even send this document further demonstrates how hostile and unsafe the environment had become.

Being on “high alert” meant the Applicant’s cognitive resources were directed toward survival rather than routine administrative tasks. The failure to hit “send” was not negligence but a direct consequence of being overwhelmed by the primary grievance filed on the same day. This omission itself is evidence of the severe psychological impact caused by the Respondent’s conduct.

The Impact Statement therefore stands as a contemporaneous record of trauma, corroborating the Applicant’s lived experience of intimidation, fear, and anxiety. It demonstrates that the Applicant was not only documenting retaliation and systemic failures but also the personal harm inflicted by the Respondent’s actions. This strengthens the causal link between the Respondent’s victimisation and the Applicant’s claim of constructive dismissal. ([Refer to Annexure IMP1](#)).

3.8.3.

On **02 November 2025**, the Applicant completed a formal “Request for Review of Unlawful Deduction,” expressly citing Section 34 of the Basic Conditions of Employment Act (BCEA) and requesting restitution of the punitive deductions imposed.

Due to the multiple concurrent grievances and escalating victimisation, the Applicant was only able to formally refer this request on 11 November 2025. This delay underscores the overwhelming nature of the hostile environment and the Applicant’s attempt to manage several urgent matters simultaneously.

The request demonstrates that the Applicant pursued lawful internal remedies before resignation, directly invoking statutory protections against unlawful deductions. The Respondent’s failure to act on this request further evidences its disregard for both employee rights under the BCEA and its duty of care.

This document is critical because it shows the Applicant was not passive — he actively sought restitution through proper channels. The Respondent’s silence and inaction reinforced the perception of an intolerable environment, contributing to the Applicant’s claim of constructive dismissal. ([Refer to Annexure REV1](#)).

3.8.4.

On **11 November 2025**, the Applicant submitted a **formal request for review**. Following this, during a **Teams meeting on 12 November 2025** with the HCBP, **Ms. Cheryl**, the Applicant sent a follow-up email regarding the discussion. In that exchange, Ms. Cheryl mentioned for the first time that a “**no work – no pay**” **application** had been applied to the Applicant’s salary, asserting that such deductions did not require consultation or consent.

The Applicant’s communications on this issue were **ignored**, and this silence is critical. The Respondent later claimed in a sworn affidavit to the **CCMA** that the Applicant had “*failed to follow procedure*.” This claim is demonstrably false and made in **bad faith**, as the Applicant had in fact followed procedure by submitting the review request and documenting the issue in writing.

This incident **illustrates** the Respondent’s pattern of **misrepresentation** and **procedural dishonesty**, further evidencing its disregard for statutory obligations under the **Basic Conditions of Employment Act (BCEA)**. It also demonstrates how the Respondent attempted to construct a false narrative of non-compliance to justify retaliatory action against the Applicant.

The Applicant’s documented efforts to seek review and clarification prove that he was actively exhausting internal remedies. The Respondent’s refusal to acknowledge these communications reinforces the perception of an intolerable environment, supporting the Applicant’s claim of **constructive dismissal**. ([Refer to Annexure REV2](#)).

3.8.5.

On **20 November 2025**, Ms. Jones imposed a restrictive “**2-Hour Cap**” on the Applicant’s ability to “*work in*” time, citing the **Departmental Adherence Policy**. This restriction was applied despite the fact that the functions in question required significantly longer hours. Ms. Jones further stated that time must be “*worked back in advance*,” a condition that made it virtually impossible for an employee in a medical and financial crisis to find any relief.

This directive was issued while Ms. Jones knew the Applicant was **running out of medication** and **struggling financially**, yet she chose to enforce the most restrictive interpretation of policy rather than show flexibility. The Respondent’s approach amounted to **performance entrapment**: employees were expected to attend year-end functions to demonstrate “*team spirit*” and “*adherence*,” but when the Applicant requested time-in-lieu to manage his health and personal obligations, management used rigid technicalities to deny fair compensation.

Treating a qualified **Specialist Nurse** as though he were a schoolchild who could not be trusted with two hours of time-in-lieu reflects deliberate **administrative harassment**. The Respondent weaponized adherence policies to nickel-and-dime the Applicant’s hours, thereby restricting his time and movement at the very moment HR was ignoring his formal grievance of **02 November 2025**.

This incident forms part of a **documented, months-long campaign of administrative harassment**, showing that the Respondent used every possible technicality to make the Applicant’s professional life intolerable. Such conduct constitutes **Occupational Detriment** under the **Protected Disclosures Act**, as it followed directly from the Applicant’s disclosures and reinforced the hostile environment that underpins his claim of **constructive dismissal**. ([Refer to Annexure RM1](#)).

3.8.6.

The Applicant’s repeated efforts to exhaust internal remedies — including the **formal grievance of 02 November 2025**, the **Request for Review of Unlawful Deduction under BCEA Section 34**, the **Impact Statement documenting trauma**, and the **follow-up communications with HR** — demonstrate a consistent attempt to resolve matters lawfully

and transparently. Each of these steps provided the Respondent with a clear opportunity to intervene, investigate, and correct the hostile environment.

Instead of acting, the Respondent chose silence, misrepresentation, and further restriction. The **30-day failure to respond** to the grievance, combined with the imposition of punitive scheduling caps and false claims of procedural non-compliance, evidences a deliberate strategy of **administrative harassment and bad faith retaliation**.

By ignoring protected disclosures, dismissing lawful review requests, and escalating victimisation, the Respondent breached its **Duty of Care** and violated statutory protections under the **Protected Disclosures Act** and the **Basic Conditions of Employment Act**.

The cumulative effect of these failures created an **intolerable environment** where the Applicant's professional integrity was undermined, his health jeopardized, and his lawful disclosures reframed as misconduct. This subsection therefore establishes that the Applicant did not resign impulsively or without cause — **he exhausted every internal remedy available**, and the Respondent's refusal to act left him with no reasonable alternative but resignation. This is the essence of **constructive dismissal**.

3.9. DECEMBER 2025: FINAL ESCALATION AND SUPPRESSION

3.9.1.

On **03 December 2025**, the Applicant was **reprimanded for a long call** that was undertaken to assist a member. This reprimand was not genuinely about productivity; it was a transparent attempt to construct grounds for charging the Applicant with "*insubordination*" and to discredit him.

In addition, **Ms. Jones unilaterally altered the Applicant's contract agreement**, imposing **overtime for the Applicant's own account**. This unilateral change was made without consultation or consent, further evidencing the Respondent's disregard for contractual obligations and statutory protections.

This incident occurred within the broader context of a **hostile working environment**, where every action of the Applicant was scrutinized and reframed as misconduct. The reprimand for

assisting a member — a core duty of a Specialist Nurse — demonstrates that the Respondent's intent was not to enforce productivity standards but to suppress the Applicant's professional integrity and retaliate against his disclosures.

The unilateral imposition of unpaid leave constitutes a form of **administrative suppression and occupational detriment**, reinforcing the Applicant's claim that the Respondent weaponized policy and contract terms to punish him. This conduct forms part of the escalating campaign of retaliation and directly supports the Applicant's claim of constructive dismissal. (*[Refer to Annexure HWE1](#)*).

3.9.2

On 3 December 2025, the Applicant received an email from Ms. Mary-Ann Jones attaching the departmental adherence policy and raising concerns regarding long calls and overtime. In response, the Applicant submitted a detailed reply (*[Annexure HWE2](#)*), highlighting the inconsistent and selective application of departmental policies.

The Applicant noted that:

- Overtime was expressly prohibited in the policy, yet Ms. Jones had instructed the Applicant to work extended hours on multiple occasions, resulting in 11-hour days.
- The Respondent invoked “burnout prevention” rules to deny the Applicant flexibility when attending the Employee Health and Safety Committee function, but ignored those same rules when requiring extended hours the following week.
- A 99-minute call was treated as misconduct despite being an isolated incident in complex circumstances, even though management had previously encouraged extended calls to improve member service.
- The attachment of the “adherence policy” was irrelevant and appeared arbitrary, adding confusion rather than clarity.
- The directive that any overtime worked would be “to the Applicant's own account” constituted a unilateral change to terms and conditions of employment, amounting to an unfair labour practice.

This correspondence demonstrates the Respondent's inconsistent enforcement of policies, selective targeting of the Applicant, and disregard for fair labour standards. It further evidences the erosion of trust and morale within the department, as noted by the Applicant in his reply. ([Refer to Annexure HWE2](#))

3.9.3.

On **04 December 2025**, the Applicant escalated matters to **Executive Leadership** through a high-stakes **Protected Disclosure (PDA)**. This escalation proves the Applicant did not “rush” to the CCMA; instead, he gave the highest levels of the company a final opportunity to address the **institutional failures** he was experiencing.

Under **Section 9 of the Protected Disclosures Act**, a disclosure to a body outside one's immediate supervisor is protected if the employee reasonably believes he will be victimized, or if he has already reported the matter internally and no action was taken. The Applicant's disclosure met both conditions.

The **30-day silence and inaction** from HR and senior leadership following the grievance of **02 November 2025** rendered the internal process futile. Ignoring the Applicant for a month while he was in a financial and mental health crisis is the ultimate proof of an **intolerable environment**.

In this escalation document, the Applicant stated: “*I am really at my breaking point now... no motivation to come to work.*” This was not merely an emotional plea; it was a **formal notice** that the employer was breaching its **Duty of Care** to provide a safe working environment. The Applicant gave Executive Leadership a clear **14-day window** to provide either a signed agreement in principle or a neutral mediator.

Executive Leadership failed to acknowledge the complaint, refused to provide a mediator, and instead **de-escalated the matter back to the very department under investigation**. By doing so, they effectively **endorsed the retaliation** and extended liability beyond Ms. Jones to the entire company. This conduct constitutes an **Automatically Unfair Dismissal**, as the Applicant was penalized for making a protected disclosure under the PDA. ([Refer to Annexure FG3](#)).

3.9.4.

On **05 December 2025**, following the Executive Leadership's de-escalation, the Applicant was forced to make an **immediate referral to the CCMA**. The trigger was the Respondent's unilateral deduction of over **40% of the Applicant's salary** without consent, while he was on **approved, psychiatrist-motivated mental health leave**.

This unlawful action was premised on an invalid "*no work – no pay*" application, which plunged the Applicant into a **debt trap** and inflicted severe **psychological harm**. The deduction constituted not only a breach of the **Basic Conditions of Employment Act (BCEA)** but also a direct act of victimisation against a whistleblower in a vulnerable state.

The unlawful deduction of **23 July 2025** marked the initial **unfair labour practice**. The subsequent pattern of **victimisation, intimidation, and deliberate inaction** while the Applicant was in a documented mental health crisis amounted to **unfair discrimination**. The Applicant was targeted and retaliated against for asserting his rights while in a **protected state (living with a disability)**.

By failing to provide a safe and non-discriminatory work environment, the Respondent breached its **Duty of Care** and violated statutory protections under the **Protected Disclosures Act** and the **Employment Equity Act**. This incident demonstrates that the retaliation was not confined to Ms. Jones but was **institutionally endorsed**, thereby rendering the dismissal **automatically unfair**. ([*Refer to Annexure CCM1*](#)).

3.9.5.

On **05 December 2025**, the Respondent's Executive **Leadership de-escalation** marked the moment the company officially failed in its duty to protect a whistleblower. This act of institutional **bad faith** made the Applicant's continued employment legally intolerable.

The Respondent attempted to frame the meeting as a "*standard grievance discussion*." In reality, it forced the Applicant to **re-litigate trauma with the very managers responsible for the retaliation**, a recognised form of **secondary victimisation** and occupational detriment.

The Applicant, feeling unsafe meeting with three managers, set clear conditions:

He refused to “*re-litigate facts*” and demanded a **point-by-point written response**.

He requested that the meeting be **recorded**, citing his “*current medical state*” and the need for **transparency**.

He explicitly linked the meeting to his mental health condition, placing the employer on notice that their procedural choices were causing him **physical and psychological harm**.

The **General Manager** refused to agree to these **safeguards**, resulting in a declared **deadlock**. The Applicant then informed leadership that he would proceed to file a **P1 Risk Report** to the **Board of Ethics, Risk, and the Lead Independent Director via the Company Secretariat**.

This incident demonstrates that Executive Leadership did not act as neutral protectors of process but instead **endorsed the retaliation** by returning the matter to the department under investigation. By failing to provide safeguards, refusing transparency, and ignoring the Applicant’s medical state, the Respondent institutionalized the retaliation. This conduct constitutes **Occupational Detriment** under the **Protected Disclosures Act** and reinforces liability for **Automatically Unfair Dismissal**. ([*Refer to Annexure DEC1*](#)).

3.9.6.

On **09 December 2025**, having lost all faith in internal grievance channels, the Applicant served a formal **Priority 1 (P1) Risk Report** on the **Group Company Secretariat**, the **Social & Ethics Committee**, and the **Risk Committee of Afrocentric Health**.

This report detailed:

- **Material governance failures** within the Respondent’s operations.
- **Patient safety risks** arising from systemic errors and management suppression of disclosures.
- The Applicant’s ongoing **victimisation and retaliation** following protected disclosures.

The **receipt of this report was formally confirmed**, establishing that the highest levels of corporate governance were placed on notice of the risks and retaliatory conduct.

This escalation demonstrates that the Applicant did not abandon internal remedies or act precipitously. Instead, he pursued the most serious governance channel available, consistent with his statutory duty as a Specialist Nurse to report risks. The Respondent's failure to act on this P1 Risk Report further evidences institutional bad faith and reinforces liability for **Occupational Detriment** under the **Protected Disclosures Act**.

This document is critical because it proves the Applicant exhausted every possible internal avenue before resignation and escalation to the CCMA. ([Refer to Annexure GRC1](#)).

3.9.7.

On **10 December 2025**, the Respondent, through its representative **Mr. Xollie Vincent Manyati**, filed an **Opposing Affidavit** in the CCMA (Case WECT23564-25). This affidavit went far beyond a legitimate legal defence; it constituted a **premeditated character assassination** of the Applicant.

The affidavit contained the following **defamatory and victimising statements**:

Labelled the Applicant as having an “*untruthful character*.”

Dismissed the Applicant's **documented, severe mental illness** as an “*excuse*” and an “*afterthought*.”

Demanded a **punitive costs order against** the Applicant, despite knowing he was facing imminent homelessness and destitution.

This affidavit was not a neutral procedural response but a deliberate act of **bad faith litigation strategy**, designed to discredit the Applicant personally, undermine his credibility, and inflict maximum harm while he was in a vulnerable state.

The filing of this affidavit represents the **final, intolerable act** that destroyed the employment relationship. It evidences the Respondent's willingness to escalate retaliation into formal proceedings, weaponizing the CCMA process to perpetuate victimisation. This conduct constitutes **Occupational Detriment** under the **Protected Disclosures Act** and reinforces the Applicant's claim of **Automatically Unfair Dismissal**. ([Refer to Annexure OA1](#)). Applicants *Reply Affidavit RA1*)

3.9.8.

On **11 December 2025**, the Applicant issued a **Final Escalation and Notice of Institutional Bad Faith** to the Board of Directors. In this escalation, the Applicant explicitly notified the Board that the Respondent's legal strategy constituted:

- **Institutional Bad Faith:** Using corporate legal resources to oppose an employee in crisis rather than investigating the underlying issues.
- **Character Assassination:** Making unfounded claims about the Applicant's "*untruthful character*" in order to intimidate and discredit him.
- **A Punitive Posture:** Seeking a costs order against an employee in documented financial distress, despite full knowledge of his vulnerability.
- **Failure of Duty of Care:** Trivialising the Applicant's health crisis and risk of destitution, thereby breaching the employer's obligation to provide a safe and supportive working environment.

The Board's failure to acknowledge this escalation or to intervene meaningfully by the stated deadline was the **final factor** that rendered the Applicant's continued employment legally intolerable. This institutional silence and refusal to act directly precipitated the Applicant's **resignation on 12 December 2025**, thereby completing the causal chain of constructive dismissal.

This escalation demonstrates that the Respondent's retaliation was not limited to individual managers but was **endorsed at the highest level of governance**, making the company as a whole liable for **Automatically Unfair Dismissal** under the **Protected Disclosures Act**. ([*Refer to Annexure GRC2*](#)).

3.9.9.

On **12 December 2025**, following the Respondent's sworn affidavit in the CCMA matter, the Applicant formally filed for **constructive dismissal and termination of employment**. The Respondent's affidavit contained **malicious character attacks, including:**

- Labelling the Applicant as "*untruthful*."
- Accusing the Applicant of engaging in "*fishing expeditions*."

These **ad hominem attacks**, made under oath by the employer, fundamentally destroyed the necessary relationship of **trust and confidence** between employer and employee.

Furthermore, the Respondent's dismissal of the Applicant's **documented mental health struggles** and claims of victimisation as "*irrelevant*" or "*sensationalist*" confirmed that the victimisation was not incidental but **officially sanctioned and institutionalized**.

Consequently, on **12 December 2025**, the Applicant transmitted a **Formal Notice of Resignation due to Automatically Unfair Constructive Dismissal** to the **Board of Directors** and the **CEO, Mr. Gerald Van Wyk**.

The Applicant submits that this termination constitutes an **Automatically Unfair Dismissal** in terms of **Section 187(1)(h) of the Labour Relations Act**, as the employer's conduct was a direct act of **retaliation against Protected Disclosures**, specifically the **P1 Material Risk Report**.

As of **12 December 2025**, the Applicant considers himself dismissed by the employer's **malicious conduct**. ([Refer to Annexure RES1](#)).

3.10. CONSTRUCTIVE DISMISSAL

3.10.1.

The **cumulative effect** of the Respondent's conduct — including **financial sabotage, discrimination, victimisation, institutional bad faith**, and finally, the **defamatory sworn affidavit** filed against the Applicant — created a working environment that was **utterly intolerable**.

The Respondent's actions systematically eroded the Applicant's dignity, professional standing, and financial security. Each act compounded the harm of the previous, escalating from administrative harassment to formal litigation strategies designed to discredit and intimidate.

As a result, the essential **relationship of mutual trust and confidence** between employer and employee was **irreparably destroyed**. The Applicant could no longer reasonably be expected to continue in employment under such conditions.

This subsection establishes that the intolerability threshold required for **constructive dismissal** under the **Labour Relations Act** was met, as the Respondent's conduct left the Applicant with no reasonable alternative but resignation.

3.10.2.

On **12 December 2025**, the Applicant had **no reasonable alternative** but to resign with immediate effect. The resignation was not voluntary in the ordinary sense but compelled by the Respondent's conduct, which had rendered the working environment intolerable.

In the **Formal Resignation Letter** ([Annexure RES1](#)), the Applicant explicitly cited:

- The **hostile environment** created by ongoing victimisation, discrimination, and administrative harassment.
- The Respondent's **bad faith**, including the defamatory sworn affidavit and refusal to provide meaningful safeguards or remedies.

This resignation was therefore a direct consequence of the Respondent's actions and omissions. It satisfies the statutory test for **constructive dismissal** under the **Labour Relations Act**, as the Applicant's departure was caused by the employer's conduct, not by choice.

The Applicant submits that this resignation constitutes an **Automatically Unfair Dismissal** in terms of **Section 187(1)(h)**, as it was a retaliatory response to his **Protected Disclosures** and governance escalations.

4. POST-RESIGNATION DISCLOSURES AND INTERNAL FAILURE

4.1.

On **16 December 2025**, notwithstanding the Applicant's resignation on **12 December 2025**, his **ethical and professional duties** as a **Specialist Nurse and Health Services Manager** compelled him to formally escalate a "**Maximum Severity**" **Governance, Risk, and Compliance (GRC) failure** to the **Board Audit & Risk Committee**.

This escalation was made in fulfilment of the Applicant's statutory and professional obligations to safeguard **patient safety, clinical integrity, and institutional accountability**. The Applicant's resignation did not extinguish these duties, and the decision to escalate reflects his continued commitment to professional ethics and compliance.

By placing the **Board Audit & Risk Committee** on notice of a maximum severity GRC failure, the Applicant demonstrated that the Respondent's misconduct extended beyond labour relations into **systemic governance breakdowns**. The Respondent's failure to act on this escalation further evidences **institutional negligence** and **bad faith**, reinforcing the Applicant's claim that retaliation was **corporately sanctioned** and that the dismissal was **automatically unfair**. ([Refer to Annexure GRC](#))

4.2.

On **17 December 2025**, the Applicant formally **retracted** the aforementioned communication. This retraction was necessitated by a **procedural error**, specifically that the initial notice had been served on a **public holiday**, thereby invalidating the compliance window and timelines specified in the original document.

The grounds for this retraction were strictly to ensure **procedural accuracy** and to rectify the technical invalidation. In the retraction, the Applicant explicitly stated that:

- The **underlying concerns remained relevant** and required remedial action.
- The Board was requested to use the information provided to implement **necessary corrective measures** at its discretion.
- The retraction did **not constitute a waiver** of any statutory, professional, or ethical duties.
- The retraction did **not invalidate the substance** of the investigative findings regarding retaliation and governance failure.

This action demonstrates the Applicant's continued commitment to **procedural integrity** and **professional ethics**, even after resignation, and underscores that the governance failures identified remained unresolved and material. ([Refer to Annexure GRC4](#))

4.3.

On **18 December 2025**, the Applicant received an email from the **Chief Risk Officer, Mr. Monwabisi Kula**, which was understood as an instruction to cease communicating with the Board's oversight committees regarding his grievances.

The Applicant responded on the same day, formally **declining to cease communication** for the following reasons:

- **Statutory Mandate:** Communications to the **Social & Ethics Committee** and the **Risk Committee** constituted formal escalations of a **Priority 1 Material Risk Report**, falling squarely within the Applicant's statutory and professional obligations.
- **Nature of Allegations:** The report involved serious allegations of **discrimination, retaliation, unlawful conduct, and systemic governance failures**, which could not be ignored or suppressed.
- **Institutional Silence:** Follow-up communications were necessitated by more than **30 days of institutional silence** regarding the Applicant's formal grievances.
- **Failure of Protocol:** The attempted de-escalation of a protected disclosure back to the very source of the complaint was procedurally improper and undermined governance safeguards.

In this correspondence, the Applicant explicitly noted the **ongoing personal, financial, and psychological harm** he was suffering, as well as the **material legal and reputational risks** to the organisation.

The Applicant concluded by affirming his **right and responsibility as a whistleblower** to keep the relevant committee chairs and the **Company Secretary** informed of material updates pertaining to the risk report.

*A true copy of this email exchange is **attached** hereto marked as (Refer to Annexure [CRO1](#) & The applicants reply [RCR1](#).)*

4.4.

On 23 December 2025, the Applicant issued a formal communication to the Respondent's Board of Directors, copied to the Company Secretary, Lead Independent Director, and Chief Risk Officer. This correspondence ([Annexure BRD1](#)) served as a **final notice** prior to the initiation of criminal proceedings and regulatory escalation.

In this disclosure, the Applicant:

- Documented statutory violations contained in the 325-page Evidence Bundle already in the Respondent's possession, including breaches of the Medical Schemes Act, Occupational Health and Safety Act, B-BBEE Act, Employment Equity Act, BCEA, and Labour Relations Act.

- Notified the Board of imminent referral to the South African Police Service (SAPS) and the National Prosecuting Authority (NPA), alongside regulatory filings with the JSE, FSCA, and CMS.
- Highlighted the humanitarian crisis resulting from the Respondent's unlawful conduct, including financial destitution, imminent eviction, and the inability to meet professional obligations such as the South African Nursing Council (SANC) registration deadline.
- Requested immediate hardship relief and a written settlement offer to prevent homelessness and further professional harm.

This communication is properly characterised as a **Protected Disclosure under the Protected Disclosures Act (PDA)**. It was made in good faith, to appropriate authorities, and concerned unlawful and irregular conduct by the Respondent. It cannot be misrepresented as a “threat,” since it followed statutory channels and sought lawful remedies.

The Board's silence in response to this urgent disclosure, while the operational line pursued a retaliatory affidavit on 10 December 2025, evidences **institutional bad faith** and a deliberate refusal to mitigate the Applicant's destitution. This failure directly contributed to the Applicant's deregistration with SANC, amounting to a **professional death sentence** and permanent loss of career advancement. ([Refer to Annexure BRD1](#))

4.5

On 23 December 2025, the Applicant issued a further **Final Notice** to the Respondent's Board of Directors, Company Secretary, Lead Independent Director, and the heads of the Social & Ethics and Risk Committees. This correspondence ([Annexure BRD2](#)) updated the Board on the status of regulatory filings and provided a last opportunity for internal resolution before formal, non-retractable investigations commenced.

In this disclosure, the Applicant confirmed that:

- The **JSE Issuer Regulation Division** had formally acknowledged receipt of the Applicant's 325-page Evidence Bundle, including documentation of reckless governance and suppression of a Priority 1 Material Risk Report.
- The **Financial Sector Conduct Authority (FSCA)** had received a complaint regarding the breakdown of internal controls and the improper "executive de-escalation" of protected disclosures.
- Filings with the **Department of Employment and Labour (DEL)** and the **B-BBEE Commission** were active, specifically concerning unlawful salary deductions and governance misrepresentation.

The Applicant further highlighted the **humanitarian crisis** caused by the Respondent's conduct:

- Two months' arrears on rent and imminent eviction.
- Punitive financial measures and psychosocial safety breaches leading to destitution.
- The retaliatory affidavit filed on 10 December 2025, which attacked the Applicant's character and dismissed his psychiatric relapse, included in regulatory filings as evidence of ongoing "occupational detriment" under the **Protected Disclosures Act (PDA)**.

The Applicant provided the Board with a **final opportunity for resolution**, requesting:

- Immediate hardship relief to prevent homelessness and cover urgent medical/living expenses.
- Compensation for automatically unfair constructive dismissal, calculated at 24 months' salary under Section 194(3) of the Labour Relations Act.
- Damages for discrimination and injury to dignity under the **Employment Equity Act**.

This communication was made transparently and in good faith, reinforcing that the Applicant's disclosures were **protected under the PDA**. The Board's failure to respond evidences institutional bad faith and a deliberate refusal to mitigate humanitarian harm, despite formal regulatory acknowledgment of the Applicant's dossier. ([Refer to Annexure BRD2](#))

4.6.

On 26 December 2025, the Applicant submitted an urgent response to the Commission for Conciliation, Mediation and Arbitration (CCMA) following receipt of the Respondent's objection to the Con-Arb process in matter WECT24486-25. This correspondence ([Annexure OCA1](#)) placed on record that the Respondent's objection was being used as a deliberate delay tactic, compounding harm rather than facilitating fair process.

The Applicant emphasised that this dispute was not a routine dismissal matter, but an **automatic unfair constructive dismissal** arising from:

- Retaliation against the Applicant's protected disclosures (whistleblowing).
- Punitive deductions and procedural containment designed to force resignation under intolerable conditions.
- Suppression of risk reports and governance failures documented in the Applicant's dossier.

The Applicant further highlighted the **humanitarian prejudice** caused by the Respondent's objection, including:

- Two months' arrears on rent and imminent eviction.
- Lack of funds for food and medication due to unlawful deductions.
- Procedural delay undermining the Applicant's constitutional right to dignity and fair labour practices.

The Applicant requested that the CCMA:

- Expedite arbitration proceedings notwithstanding the employer's objection, in recognition of the automatic unfair nature of the dismissal.
- Alternatively, grant interim relief measures to prevent homelessness and ensure access to food and medication pending arbitration.

This submission was made transparently and in good faith, ensuring the CCMA was fully apprised of both the procedural and humanitarian dimensions of the matter. It forms part of the Applicant's post-resignation disclosures, evidencing the Respondent's continued reliance on procedural tactics to delay accountability while the Applicant faced destitution. (Refer to [Annexure OCA1 – Urgent Response: Employer's Objection to Con-Arb](#))

4.7

On 26 December 2025, the Applicant submitted a formal notification to the Commission for Conciliation, Mediation and Arbitration (CCMA) confirming that multiple external regulators had been seized with the matter. This correspondence ([Annexure NRE1](#)) followed the Respondent's objection to the Con-Arb process and placed on record that the Applicant had escalated the dispute beyond the CCMA due to continued procedural containment and humanitarian urgency.

In this disclosure, the Applicant confirmed that:

- The **South African Human Rights Commission (SAHRC)**, **JSE**, **Council for Medical Schemes (CMS)**, **Financial Sector Conduct Authority (FSCA)**, **B-BBEE Commission**, and the **Department of Employment and Labour (DEL)** had all been formally notified of systemic governance failures and human rights violations arising from the dispute.
- The Applicant's full whistleblower dossier had been submitted to these regulators for urgent intervention.

- The escalation was necessary to ensure accountability and immediate oversight, given the Respondent's reliance on delay tactics and the Applicant's worsening humanitarian crisis.

This notification was made transparently and in good faith, ensuring that the CCMA was aware that external regulators were now actively engaged alongside its own processes. It demonstrates that the Applicant pursued every lawful channel available to secure relief and accountability, reinforcing the protected nature of his disclosures under the **Protected Disclosures Act (PDA)**. (Refer to [Annexure NRE1](#) – *Notification of Regulator Escalation: CCMA Case WECT24486-25*)

4.8. Initial Request for Statutory Exit and Benefit Documentation

On **7 January 2026**, the Applicant addressed a **formal and cordial request** to **Cheryl-Dawn Modern**, a representative of the Respondent's Human Capital department, seeking assistance with his transition following termination of employment.

- The Applicant explicitly requested the completion of the **UI-19 form** and any other relevant exit documents necessary to lodge his **Unemployment Insurance Fund (UIF) application**.
- He further requested information regarding the **Umbrella Fund benefit documents**, offering to complete any required internal forms or provide updated banking and contact details to facilitate the process.
- In this communication, the Applicant made it clear that these documents were **vital to meeting his immediate financial needs** during this period of transition.

Despite the Applicant's proactive engagement and the **standard administrative nature** of this request, the Respondent failed to provide the documents or even acknowledge receipt. This omission marked the beginning of the **systemic withholding of statutory exit documentation**, evidencing deliberate obstruction of the Applicant's lawful entitlements. (Refer to [Annexure EXIT1](#))

4.9.

On **9 January 2026**, following the failed conciliation proceedings at the Commission for Conciliation, Mediation and Arbitration (CCMA),

I issued a formal Notice of Intent: Irreversible Regulatory Filings and Media Release to the Respondent's executive leadership and board members (annexed hereto as [Annexure KWA1](#))).

In this notice, I recorded the withdrawal of my minimum settlement offer of R2.5 million, which had been made in good faith, and advised that any future settlement or court-ordered restitution would be sought at a minimum of R10 million to account for the ongoing and extended harm.

In my Notice of Intent dated 9 January 2026, I advised the Respondent that I was considering escalation to regulatory bodies and the media. While I activated regulatory filings, I ultimately chose not to escalate to the media, as I believed it more appropriate to pursue relief through the Labour Court.

This decision reflects my commitment to resolving the matter through lawful and formal channels, and does not detract from the seriousness of the harm suffered or the validity of my disclosures. ([Refer to Annexure KWA1](#))

4.10.

On **9 January 2026**, the Applicant formally notified the South African Nursing Council (SANC) that his deregistration and inability to maintain professional fees were the direct result of occupational detriment and retaliation, as defined under the Protected Disclosures Act.

In this urgent communication ([Annexure SANC1](#)), the Applicant recorded:

- **Unlawful salary deductions** exceeding 40% of remuneration while admitted to a psychiatric hospital.
- **Induced destitution**, resulting in homelessness and the inability to maintain professional standing and pay SANC fees.
- **Legal misrepresentation and identity harassment**, including intentional misgendering in sworn affidavits submitted to the CCMA.

The Applicant requested that this notification be placed on his professional file to ensure that his registration status is restored without prejudice once restitution is achieved through the Labour Court process.

SANC acknowledged receipt of this disclosure and confirmed its referral to the relevant department for further assistance. ([Refer to Annexure SANC2](#))

4.11. Obstruction of Statutory Benefit Claims

On **14 January 2026**, having received no response to his previous correspondence, the Applicant followed up with **Sipokazi Makaula**, a Human Capital Consultant, to request his **retirement claim** and **UIF forms**.

On **15 January 2026**, Ms. Makaula responded by requesting the Applicant's basic personal information, including his name, ID number, employment status, business unit, and manager's name. Despite being included in all previous formal grievance referred to HR.

The Applicant submits that this request constituted a **clear stalling tactic** and a demonstration of **institutional bad faith**, for the following reasons:

- **Existing Records:** As a Human Capital Consultant, Ms. Makaula had direct access to the Respondent's payroll and personnel records where all such details were already stored.
- **Prior Legal Identification:** The Respondent's own legal representative, **Mr. Xollie Vincent Manyati**, had already identified the Applicant and his specific role in a sworn **Opposing Affidavit filed on 10 December 2025** in Case **WECT23564-25**.
- **Recent Employment:** The Respondent's **uFiling records** confirmed the Applicant's employment as recently as **November 2025**, making the query regarding whether he was a "former employee" redundant and obstructive.

This refusal to provide essential exit documentation under the guise of "verification" is a continuation of the **occupational detriment** suffered by the Applicant and has directly hindered his ability to access **social security and retirement benefits** to which he is lawfully entitled. ([Refer to Annexure EXIT1](#))

4.12. Formal Notice of Statutory Non-Compliance and Evidence of Bad Faith

On **15 January 2026**, the Applicant issued a **formal notice of statutory non-compliance** to the Respondent's Human Capital department and executive leadership, including the **Chief Risk Officer**.

- In this communication, the Applicant explicitly rejected further requests for basic identity and employment details as **bad-faith stalling tactics**, noting that:
 - The Respondent's own legal representatives had already identified the Applicant in sworn affidavits.
 - Such data is readily available in the Respondent's payroll and personnel systems.

- The Applicant provided **objective evidence of statutory non-compliance** in the form of a screenshot from the **Department of Employment and Labour’s uFiling portal**.
 - This evidence confirmed that for **June 2025**, the Respondent failed to submit a declaration of the Applicant’s employment and contributions, despite the Applicant’s payslip for that month reflecting that **UIF deductions** had been made.
 - The Applicant submits that this discrepancy constitutes a **clear violation of the Unemployment Insurance Contributions Act**.
- The Applicant further alerted the Respondent’s leadership that the continued withholding of the **UI-19 form, Service Certificate, and Umbrella Fund Withdrawal Forms** would be presented to this Court as evidence of **continued occupational detriment and institutional bad faith**.
- A **final demand** was issued for these documents to be provided by **12:00 PM on Monday, 19 January 2026**. As of the date of this filing, the Respondent remains in **default of its statutory obligations**. ([Refer to Annexure EXIT2](#))

4.12. Misrepresentation in Certificate of Service

On **19 January 2026**, the Applicant formally objected to the Respondent’s issuance of a **Certificate of Service** that misrepresented his role and employment details. Instead of reflecting accurate payroll and HR records, the Certificate was deliberately aligned with the Respondent’s **Opposing Affidavit dated 10 December 2025**, thereby tailoring a statutory document to litigation pleadings.

The Applicant highlighted that:

- The **Certificate of Service** is a statutory document required for UIF and retirement fund processing, and must be accurate and consistent with employment records.
- Adjusting the Applicant’s role to fit litigation narratives constitutes **misrepresentation** and undermines compliance with the **Basic Conditions of Employment Act**.
- The Respondent had full knowledge of the Applicant’s role and responsibilities, as evidenced by the recorded Microsoft Teams session titled “*Naming Convention*”, during which the **Operational Manager, Ms. Nthabiseng Nkatane**, and **Human Capital Consultant, Ms. Sipokazi Makaula**, were both present.
- During this session, the Operational Manager explicitly confirmed the Applicant’s designation as **Case Manager** and instructed him to **update his email signature immediately** to reflect this title.

These sessions were **recorded**, and the Applicant relies on them as **objective evidence** that the Respondent was fully aware of his correct role. Any deviation from these facts in the Certificate of Service is therefore **unjustifiable** and constitutes a deliberate act of misrepresentation.

The Applicant issued a **formal demand** for correction by close of business on **19 January 2026**, warning that failure to comply would result in a complaint to the **Department of Employment and Labour (DEL)** and a request for statutory audit. ([Refer to Annexure EXIT3](#))

This incident demonstrates the Respondent's continued **bad faith**, deliberate obstruction of statutory entitlements, and willingness to manipulate official records to suit litigation strategy, thereby aggravating the Applicant's occupational detriment. ([Refer to Annexure CERT1](#))

4.13

. Post-Resignation Disclosures and Internal Failure

Following the Applicant's resignation, the Respondent's Human Resources department issued a Certificate of Service which purported to reflect the Applicant's employment history. The Applicant immediately identified material inaccuracies and formally requested correction.

In correspondence dated 19 January 2026, the Respondent's Senior HR Business Partner, Ms. Cheryl-Dawn Modern, asserted that the Certificate of Service was "correct and fully aligned with employment records as well as statutory requirements." The Respondent further denied that any changes to the Applicant's designation had been implemented, despite the recorded "*Naming Convention*" Teams meeting attended by Sipokazi Makaula and Nthabiseng Nkatane, where the Applicant verbally accepted the updated designation and subsequently amended his professional signature to reflect the new title.

The Respondent's insistence that the Certificate of Service is accurate, while simultaneously disregarding the recorded meeting and updated identifiers, demonstrates deliberate misrepresentation and tailoring of statutory documents to align with its litigation pleadings.

Such conduct is unlawful, as statutory records must reflect factual employment history and not be manipulated for defensive purposes.

The Applicant records that the Respondent maintains custody of the full Teams recording of the “*Naming Convention*” meeting. This recording constitutes material evidence directly relevant to the dispute concerning the Applicant’s designation and the accuracy of the Certificate of Service. The Applicant has no independent access to the recording, as it is stored on the Respondent’s systems.

The Applicant hereby demands that the Respondent produce the full and unaltered recording for inspection and inclusion in these proceedings. Should the Respondent fail to disclose the recording, the Applicant will seek an order compelling production in terms of Rule 6(7) of the Labour Court Rules and will invite this Honourable Court to draw an adverse inference from the Respondent’s refusal to disclose evidence within its possession.

This refusal to correct statutory documents and disclose material evidence forms part of the Applicant’s broader case of internal failure, misrepresentation, and occupational detriment.

5. EXTERNAL ESCALATION TO REGULATORS

5.1.

Due to the Respondent’s **complete institutional failure** and the material governance risks involved, the Applicant was compelled, in the **public interest**, to notify the following external regulators:

- **5.1.1. JSE Limited (Issuer Regulation Division):** Reported material governance failures and director misconduct. *Acknowledgement received.*
([Refer to Annexure REG1](#))
- **5.1.2. Broad-Based Black Economic Empowerment (B-BBEE) Commission:** Reported potential fronting and violations of the B-BBEE Act. *Acknowledgement received.*
([Refer to Annexure REG2](#))
- **5.1.3. Financial Sector Conduct Authority (FSCA):** Reported conduct unbecoming of a financial services provider and systemic risk. *Filed online via the FSCA portal.*
([Refer to Annexure REG3](#))
- **5.1.4. Council for Medical Schemes (CMS):** Reported the **Gexus/DMS failure**, which caused patient harm and ethical breaches. *Acknowledgement received.*
([Refer to Annexure REG4](#))

- **5.1.5. South African Human Rights Commission (SAHRC):** Reported discrimination based on **gender identity** and **mental health**. *Acknowledgement received.*
(Refer to Annexure REG5)
- **5.1.6. Department of Employment and Labour (DEL):** Reported **unfair labour practices** and **BCEA violations**. *Filed.*
(Refer to Annexure REG6)

These notifications were acts of **good faith**, demonstrating that the Applicant's disclosures were **genuine, credible, and made in the public interest**. They further establish that **internal avenues had been exhausted** and that the Respondent's refusal to act necessitated escalation to external regulators.

6. POST-RESIGNATION MISREPRESENTATION AND EVIDENTIARY DISCLOSURE FAILURE

6.1. HR Reply and Certificate of Service Misrepresentation

Following the Applicant's resignation, the Respondent's Human Resources department issued a Certificate of Service which purported to reflect the Applicant's employment history. The Applicant immediately identified material inaccuracies and formally requested correction.

In correspondence dated 19 January 2026, the Respondent's Senior HR Business Partner, Ms. Cheryl-Dawn Modern, asserted that the Certificate of Service was "correct and fully aligned with employment records as well as statutory requirements." The Respondent further denied that any changes to the Applicant's designation had been implemented, despite the recorded "Naming Convention" Teams meeting attended by Sipokazi Makaula and Nthabiseng Nkatane, where the Applicant verbally accepted the updated designation and subsequently amended his professional signature to reflect the new title.

The Respondent's insistence that the Certificate of Service is accurate, while simultaneously disregarding the recorded meeting and updated identifiers, demonstrates deliberate misrepresentation and tailoring of statutory documents to align with its litigation pleadings.

Such conduct is unlawful, as statutory records must reflect factual employment history and not be manipulated for defensive purposes.

6.2 Demand for Production of Recorded Meeting

The Applicant records that the Respondent maintains custody of the full Teams recording of the “*Naming Convention*” meeting. This recording constitutes material evidence directly relevant to the dispute concerning the Applicant’s designation and the accuracy of the Certificate of Service. The Applicant has no independent access to the recording, as it is stored on the Respondent’s systems.

The Applicant hereby demands that the Respondent produce the full and unaltered recording for inspection and inclusion in these proceedings. Should the Respondent fail to disclose the recording, the Applicant will seek an order compelling production in terms of Rule 6(7) of the Labour Court Rules and will invite this Honourable Court to draw an adverse inference from the Respondent’s refusal to disclose evidence within its possession.

This refusal to correct statutory documents and disclose material evidence forms part of the Applicant’s broader case of internal failure, misrepresentation, and occupational detriment.

On 19 January 2026, the Applicant formally requested disclosure of the recording from the Respondent’s HR department. This request remains outstanding, and the Applicant reserves the right to file a Notice to Compel should the Respondent fail to comply.

7. RESULTING HARM AND DAMAGES

7.1.

The **unlawful July deduction** directly crippled the Applicant’s financial position. As a result, the Applicant was unable to meet basic living expenses, including the payment of rent.

By **November 2025**, the Applicant had been formally placed on **notice of eviction**, placing him at imminent risk of **homelessness**. This financial destitution was not self-inflicted but arose solely from the Respondent’s unlawful and retaliatory conduct, which deprived the Applicant of the means to sustain himself.

The eviction notice serves as contemporaneous evidence of the **material harm** suffered, demonstrating that the Respondent's actions caused not only professional and reputational damage but also **severe personal hardship**. (*Refer to Annexure EVIC1*)

7.2

As a direct consequence of the Respondent's unlawful conduct and the resulting financial destitution, the Applicant was unable to pay the annual South African Nursing Council (SANC) registration fees of R870.00, which fell due on 31 December 2025.

The Applicant's professional nursing license has therefore been suspended, effectively terminating a 15-year career in nursing and health services management. This outcome constitutes the "professional erasure" that was explicitly threatened by the Respondent in March 2025, now realised through deliberate financial sabotage and institutional retaliation. (*Refer to Annexure SANC2*)

The deregistration is not merely administrative but represents a professional death sentence, stripping the Applicant of the ability to practice, earn a livelihood, and continue contributing to the healthcare profession. In addition, the suspension has extinguished all prospects of career advancement, postgraduate study, and progression into senior occupational health leadership roles.

At the time of deregistration, the Applicant was awaiting feedback regarding career advancement into Occupational Health Nursing Studies (OHNS). However, the escalation of victimisation and the Respondent's deliberate obstruction resulted in no response being received. This failure, combined with the broader moving parts of the Applicant's case, directly contributed to career stagnation and the permanent loss of professional advancement opportunities. (*Refer to Annexure CPUT1*)

7.3. Severe Psychological Harm

The Respondent's actions have **severely exacerbated** the Applicant's pre-existing **depression and PTSD**, causing significant deterioration in mental health and overall wellbeing.

The **public character assassination** contained in the Respondent's sworn affidavit inflicted **profound humiliation, anxiety, and reputational damage**, compounding the Applicant's psychological distress. This defamatory conduct has not only undermined the Applicant's professional standing but has also caused enduring **loss of reputation** within the healthcare and broader professional community.

The cumulative effect of these actions constitutes **severe psychological harm**, directly attributable to the Respondent's unlawful retaliation and bad faith conduct.

7.4

"The Respondent's conduct extends beyond financial prejudice; it is an assault on my professional trajectory. As evidenced by my acceptance into the 2026 Postgraduate Diploma in Occupational Health Nursing ([Annexure CPUT1](#)) and my clinical commendation ([Annexure RESUI](#)), I am a dedicated Nurse Specialist. The Respondent's continued withholding of my statutory documents and funds is a deliberate attempt to sabotage my academic and professional future."

8. PROCEDURAL HISTORY

8.1. The Applicant referred two disputes to the CCMA:

- a) Case [WECT23564-25](#): Unfair deduction, discrimination (unfair labour practice).
- b) Case [WECT24486-25](#): Constructive dismissal (automatically unfair).

8.2. Conciliation was held on 9 January 2026. The Commissioner, upon hearing the matter involved a protected disclosure, correctly noted it belonged in the Labour Court. A certificate of non-resolution (outcome) was issued.

8.3. The Applicant note for the record that during this conciliation, the Commissioner made inappropriate remarks, telling the Applicant to "Google" the Labour Court while the Applicant was visibly distressed. A misconduct complaint has been lodged with the CCMA. ([Refer to Annexure CCC1](#))

9. LEGAL GROUNDS FOR THE CLAIM

9.1

Automatically Unfair Dismissal – Section 187(1)(h) of the LRA: The dominant reason for the Applicants constructive dismissal was that the Applicant made one or more protected disclosures as defined in the PDA. The chronology shows a direct nexus: each disclosure triggered a fresh wave of retaliation.

9.2.

Occupational Detriment – PDA Section 1(1)(viii): The unlawful deduction, discrimination, victimisation, hostile meetings, and character assassination in the affidavit all constitute "occupational detriment" as a result of making a protected disclosure.

9.3.

Unfair Discrimination – EEA Section 6:

- 9.3.1. Discrimination based on gender identity (the "[Wilma](#)" incident).
- 9.3.2. Discrimination based on disability (the dismissal of the Applicants severe mental illness as an "[excuse](#)").

9.4.

Unfair Labour Practice – BCEA Section 34 & LRA Section 186(2)(a): The deduction of 40.47% of the Applicants salary without written consent was both unlawful and substantially unfair.

9.5.

Constitutional Violations: The Respondent's conduct violated the Applicants constitutional rights to:

- Dignity (Section 10)
- Psychological Integrity (Section 12(2))
- Fair Labour Practices (Section 23(1))
- Access to Healthcare (Section 27)

9.6.

Defamation & Intentional Infliction of Emotional Distress: The Respondent's sworn affidavit of 10 December 2025 contained false, malicious statements intended to harm the Applicant reputation and cause maximum psychological damage.

9.7.

The Respondent has sought to portray the Applicant as untruthful and careless, relying on minor inconsistencies in informal communications. The Applicant acknowledges that, in certain personal exchanges, simplified references or shorthand descriptions of his role and circumstances may have been used. These communications were not intended as official records and cannot alter the Applicant's actual employment status or statutory entitlements.

The Applicant's designation and responsibilities are conclusively established by:

- Payroll and HR records;
- Recorded Microsoft Teams sessions, including the "*Naming Convention*" meeting attended by senior management;
- Certificates and correspondence issued by the Respondent itself.

Any attempt by the Respondent to elevate informal communications above these authoritative records must be regarded as a diversionary tactic. Such conduct is consistent with the Respondent's broader pattern of bad faith, surveillance, and institutional hostility.

The Applicant accordingly asserts that this founding affidavit is truthful, accurate, and supported by objective documentary evidence. Minor inconsistencies in personal communications do not diminish the probative value of the annexures or the statutory breaches documented herein.

10. CONCLUSION

The facts set out above demonstrate a **systematic pattern of retaliation, suppression, and statutory non-compliance** by the Respondent. What began as protected disclosures made in good faith escalated into deliberate acts of **occupational detriment**, including financial sabotage, reputational harm, and the unlawful withholding of statutory exit documentation.

The Respondent's conduct has caused the Applicant **severe and irreparable harm**, including:

- **Financial destitution and imminent homelessness;**
- **Professional erasure** through deregistration with the South African Nursing Council, ending a 15-year career;
- **Psychological harm** through humiliation, reputational damage, and exacerbation of depression and PTSD;
- **Denial of statutory entitlements**, including UIF and retirement benefits, in violation of labour legislation;
- **Loss of future opportunities and earnings**, as the Applicant's deregistration and reputational damage have destroyed his ability to continue in the nursing profession or secure comparable employment, loss of career development and resulting in long-term economic harm.

The Applicant has acted at all times in **good faith**, exhausting internal remedies before escalating disclosures to external regulators in the public interest. The Respondent, by

contrast, has acted in **bad faith**, disregarding statutory obligations, governance protocols, and whistleblower protections under the **Protected Disclosures Act**.

Accordingly, the Applicant respectfully submits that this Honourable Court should:

1. **Find that the Respondent's conduct constitutes automatically unfair dismissal and occupational detriment** under the Labour Relations Act and the Protected Disclosures Act;
2. **Order appropriate relief**, including compensation for financial loss, reinstatement of statutory benefits, damages for reputational and psychological harm, and **compensation for loss of future earnings and opportunities**;
3. **Direct the Respondent to comply with its statutory obligations**, including the immediate provision of UIF and retirement documentation;
4. **Grant further and/or alternative relief** as the Court deems just and equitable in the circumstances.

The Applicant places this matter before the Court not only to secure personal redress, but also to affirm the principles of **procedural fairness, statutory compliance, and whistleblower protection**, which are essential to the integrity of labour relations and governance in South Africa.

11. INFORMATION IN POSSESSION OF THE RESPONDENT

11.1

Formal Meeting with Senior Manager (May 2025)

In May 2025, the Applicant scheduled a formal meeting with senior manager Ms. Mashele. During this meeting, the Applicant reported both derogatory comments made by Ms. Jones and the financial impact of the deductions imposed. In response, Ms. Mashele stated: *"I will*

personally apply for special leave; you should just provide the letter from the psychiatrist via email.” ([Refer to Annexure MED1.](#))

This exchange demonstrates that the Respondent was fully aware of the Applicant’s psychiatric condition and the financial hardship caused by the deductions. Rather than addressing the underlying misconduct or exploring appropriate statutory remedies such as incapacity leave or reasonable accommodation, the Respondent offered a limited concession of “special leave,” thereby failing to take adequate or lawful steps to protect the Applicant’s rights.

Furthermore, in October 2025, Ms. Mashele, in her written response to the Applicant’s email, referred to the Applicant’s gender identity as a “typo” and asserted that the Applicant and Ms. Jones had “never had any previous problem.” This dismissive and inaccurate statement illustrates the Respondent’s ongoing minimisation of **the** Applicant’s discrimination complaints, its refusal to acknowledge the seriousness of the derogatory conduct, and its attempt to erase the Applicant’s lived experience. ([Refer to Annexure TYP1.](#))

11.2

Disclosure of Psychiatric Crisis (21–23 May 2025)

On 21 May 2025, the Applicant experienced a psychiatric crisis. This incident was subsequently disclosed to Ms. Jones via Team Leader Gajaad, following a conversation between the Applicant and Gajaad on the morning of 22 May 2025.

Upon receiving disclosure, Ms. Jones instructed the Applicant to leave the premises immediately and obtain psychiatric care. The Applicant was admitted to a psychiatric facility on 23 May 2025.

This disclosure placed the Respondent on direct notice of the seriousness of the Applicant’s condition. Despite this, the Respondent failed to take reasonable steps to provide accommodation or support, and instead continued to apply punitive measures, thereby aggravating the Applicant’s vulnerability.

The Respondent retains internal records of this disclosure, including communications between Team Leader Gajaad and Ms. Jones, and any related HR documentation. These records are exclusively in the Respondent's possession and are material to establishing that the Respondent had direct knowledge of the Applicant's psychiatric condition and financial hardship, yet failed to act lawfully or reasonably.

11.3

Postgraduate Diploma in Occupational Health Nursing (PGDip OHN) Application

The Applicant submitted his final and complete application, together with an acceptance letter, to commence studies in 2026 for the Postgraduate Diploma in Occupational Health Nursing (PGDip OHN). Following this submission, the pressure and victimisation directed at the Applicant increased significantly, manifesting in heightened scrutiny, obstructive conduct, and deliberate interference with his professional trajectory.

The Respondent retains internal records of these submissions, including the Applicant's postgraduate application documents and related Teams chats with Respondent representatives. These records are exclusively in the Respondent's possession and are material to establishing that the Applicant was actively pursuing career advancement opportunities, yet was subjected to escalating hostility and obstruction immediately thereafter.

This evidence demonstrates that the Respondent's conduct not only caused financial and professional harm but also directly curtailed the Applicant's advancement into occupational health leadership, thereby compounding the loss of career progression and contributing to the broader pattern of discrimination and retaliation.

11.4

Executive Leadership De-Escalation and Secondary Victimisation (05 December 2025)

On 05 December 2025, the Respondent's Executive Leadership convened a meeting under the guise of "de-escalation." This marked the moment the Respondent officially failed in its duty to

protect a whistleblower. The act constituted institutional bad faith and rendered the Applicant's continued employment legally intolerable.

The Respondent attempted to frame the meeting as a "*standard grievance discussion*." In reality, it compelled the Applicant to re-litigate trauma in front of the very managers responsible for the retaliation. This practice is recognised as secondary victimisation and occupational detriment, compounding the Applicant's vulnerability.

The Applicant, feeling unsafe in a meeting with three managers, set clear conditions for participation, including:

- That the meeting be conducted in a neutral and supportive manner,
- That the Applicant's disclosures be treated with confidentiality and respect,
- That the managers implicated in the retaliation not dominate or control the discussion, and
- That the Applicant's rights as a whistleblower be acknowledged and safeguarded.

Despite these conditions, the Respondent disregarded the Applicant's concerns and proceeded in a manner that aggravated the Applicant's distress. The Teams chat records and internal communications relating to this meeting are exclusively in the Respondent's possession. These records are material to establishing that the Respondent failed to uphold its statutory and ethical obligations to protect a whistleblower, instead perpetuating retaliation under the guise of grievance handling.

11.5

The Applicant records that the Respondent maintains custody of the full Teams recording of the "Naming Convention" meeting. This recording constitutes material evidence directly relevant to the dispute concerning the Applicant's designation and the accuracy of the Certificate of Service. The Applicant has no independent access to the recording, as it is stored exclusively on the Respondent's systems.

The Applicant hereby demands that the Respondent produce the full and unaltered recording for inspection and inclusion in these proceedings. Should the Respondent fail to disclose the recording, the Applicant will seek an order compelling production in terms of Rule 6(7) of the Labour Court Rules and will invite this Honourable Court to draw an adverse inference from the Respondent's refusal to disclose evidence within its possession.

On 19 January 2026, the Applicant formally requested disclosure of the recording from the Respondent's HR department. This request remains outstanding, and the Applicant reserves.

11.6 Irretrievable Breakdown of the Employment Relationship

I submit that the cumulative effect of the Respondent's conduct has rendered the continuation of the employment relationship irretrievably intolerable. The Respondent remains in possession of the original April 2025 proposal (Annexure CPD1) and the EHS Committee reports (Annexure EHS-BUNDLE). The Respondent's choice to implement these specialized innovations while simultaneously orchestrating my constructive dismissal—through punitive deductions and the withholding of statutory exit documents—constitutes a profound act of institutional exploitation and bad faith.

12. PRAYER FOR RELIEF

The Applicant respectfully requests that this Honourable Court grant the following orders against the Respondent:

12.1 Declaratory Orders

- a) Declaring that the Applicant's dismissal was an **Automatically Unfair Dismissal** in terms of Section 187(1)(h) of the Labour Relations Act 66 of 1995 ("LRA").
- b) Declaring that the Respondent committed **unfair discrimination** against the Applicant on the grounds of gender identity and mental disability, in contravention of Section 6 of the Employment Equity Act 55 of 1998 ("EEA").
- c) Declaring that the salary deduction of **R14,811.77** effected in July 2025 was unlawful in terms of Section 34 of the Basic Conditions of Employment Act 75 of 1997 ("BCEA"), and constituted an unfair labour practice.
- d) Declaring that the Respondent subjected the Applicant to **occupational detriment** as defined in Section 1 of the Protected Disclosures Act 26 of 2000 ("PDA").

12.2 Compensation and Damages

- a) **Compensation for Automatically Unfair Dismissal:** The maximum compensation of 24 months' remuneration, calculated on the Applicant's Cost to Company (CTC) of R42,796.13 per month.

- Amount: R1,026,459.12 ($R42,796.13 \times 24$ months)

- b) **Reimbursement of Unlawful Deduction:** Payment of the unlawfully deducted amount plus interest.

- Principal Amount: R14,811.77
 - Interest at the prescribed rate (10.25% per annum) from 23 July 2025 to date of payment.

- c) **Constitutional Damages:** Compensation for infringement of the Applicant's constitutional rights to dignity, psychological integrity, and fair labour practices.

- Amount: R200,000.00

d) **Aggravated Damages:** For defamation, intentional infliction of emotional distress, humiliation, and pain and suffering caused by the Respondent's malicious affidavit and overall conduct.

- Amount: R150,000.00

e) **Future Loss of Earnings and Career Impairment:** For the destruction of the Applicant's nursing career through induced destitution leading to SANC deregistration, together with the loss of opportunity to pursue **postgraduate Occupational Health Nursing studies in 2026**.

- Amount: R1,500,000.00 (based on estimated loss of future income over 5+ years and foregone postgraduate advancement)

f) **Medical and Counselling Costs:** For past and future therapy and psychiatric treatment necessitated by the Respondent's actions.

- Amount: R150,000.00

12.3 Total Monetary Claim

Sum of 8.2(a) to 8.2(f): **R3,041,918.89**

(Three Million Forty-One Thousand Nine Hundred and Eighteen Rand and Eighty-Nine Cents)

12.4 Costs of Suit

- An order that the Respondent pay the costs of this application on the scale as between attorney and client, in light of the Respondent's egregious, vexatious, and mala fide conduct throughout.

12.5 Further Relief

- The Applicant prays for such further and/or alternative relief as this Honourable Court may deem fit.

13. VERIFICATION

13.1 The Applicant verifies that the facts contained in this affidavit are true and correct to the best of the Applicant's knowledge and belief.

13.2 The Applicant confirms that the annexures referred to herein are true copies of the original documents in the Applicant's possession.

13.3 The Applicant understands that any false statement in this affidavit may render the Applicant liable to prosecution for perjury.

THUS SWORN TO AND AFFIRMED before me at Cape Town on this _____ day of January 2026.

DEPONENT / THE APPLICANT:

WILBUR WILLIAM MATTHEE

BEFORE ME:

Commissioner of Oaths

Full Names: _____

Business Address: _____

Contact Number: _____

Date of Expiry of Commission: _____

ANNEXURE INDEX (Referenced in Affidavit)

- SECTION A: Employment & Personal Details
 - A1 (ANI1): Employment Contract
 - A2 (RESU1): Report from Medical Team Leader Resuscitation Unit
 - A3: (SANC1): SANC Registration Certificate
 - A4: (CPUT1): Acceptance letter for Postgraduate Occupational Health Nursing (2026)
 - A5: (PS1) June 2025 Payslip
 - A6: (CPD1) Intertextual Property
 - A7: (EH&S1) Acting Chairman of Employee Health and Safety Committee

- SECTION B: Medical Evidence
 - B1 (MED1): Psychiatric Report – Dr. Jacques Malan (15 May 2025)
 - B2 (EM1): Email to Ms. Mashele (16 May 2025)
 - B3 (MV1): Medical Victimisation Documentation (May 2025)
 - B4 (BDC1): Documentation of Unpaid Leave for Medical Emergency
 - B5 (W/NW1): Withdrawal Symptoms Report (13 Aug 2025)

- SECTION C: Protected Disclosures
 - C1 (T1): Notebook Entry – Threat from Ms. Jones (6 Mar 2025)
 - C2 (M1): Teams Chat – Duplicate LACE Files (6 Mar 2025)
 - C3 (G1): Email – Gexus/DMS System Failure (23 Oct 2025)
 - C4 (GRC1): P1 Risk Report to Board (9 Dec 2025)

- C5 (GRC2): Escalation to Executive Leadership (4 Dec 2025)
- C6 (GRC3): Maximum Severity GRC Escalation (16 Dec 2025)
- C7 (GRC4): Retraction of GRC Escalation (17 Dec 2025)
- C8 (RCR1): Response to CRO “Cease Communication” (18 Dec 2025)
- C9 (BRD1): Final Notice – Criminal Reference and Regulatory Inquiry (23 Dec2025)
- 10 (BRD2): Notice of Regulatory Acknowledgement & Urgent Relief
- C10 (OCA1): Response to Employer’s Objection to Con-Arb (26 Dec 2025)

- SECTION D: Discrimination

- D1 (SCR1): Teams Chat – “Wilma” Misgendering (23 Sep 2025)
- D2 (TYP1): Email – Discrimination Dismissed as “Typo” (1 Oct 2025)
- D3 (ONE1): Email – Directive for 1-on-1 Meeting with Ms. Jones (25 Sep 2025)
- D4 (FR1): Escalation to HR/Union – Referral Back to Department

- SECTION E: Unlawful Deductions

- E0 (LIE1): Email – Staggering Debt Refusal
- E1 (PS1): June 2025 Payslip – UIF Deduction
- E2 (PS2): July 2025 Payslip – 40.47% Deduction
- E3 (POL1): Teams Chat – Policy Snippet (24 Jul 2025)
- E4 (REV1): Request for Review of Unlawful Deduction (2 Nov 2025)
- E5 (REV2): Follow-up Email (12 Nov 2025)
- E6 (UPL1): Double Unpaid Leave Entry (29 Sep 2025)
- E7 (SCR0): uFiling Screenshot – No June 2025 Declaration
- E8 (AMR1): Absence Management Review Notes (24 Jun 2025)
- E9 (RPM1): “Oracle Instruction” Email (21 May 2025)

- SECTION F: Grievance & Meetings

- F1 (FG1): Formal Grievance – Gender Discrimination (25 Sep 2025)
- F2 (FG2): Formal Grievance – Strategic Entrapment (2 Nov 2025)
- F3 (FG3): Formal Grievance – Hostile Environment (4 Dec 2025)
- F4 (T2): Transcript of 31 Oct 2025 Meeting with Ms. Jones
- F5 (HTV1): Email – Hostile Tone from Ms. Jones (6 Oct 2025)
- F6 (VICT1): Email – Victimisation Post-Disclosure (23 Oct 2025)
- F7 (IMP1): Impact Statement Draft (2 Nov 2025)
- F8 (UNI1): Sudden Unilateral Changer to Pilot Agreement

- SECTION G: Suppression & Dismissal

- G0 (DES1): Executive Leadership De-escalation Email (5 Dec 2025)
- G1 (CRO1): CRO “Cease Communication” Email (18 Dec 2025)
- G2 (RES1): Resignation Letter (12 Dec 2025)
- G3 (RCA1): Rule 17a Response to Oppose Con/Arb
- G4 (HWE1): Email – Reprimand for Long Call (3 Dec 2025)
- G5 (HWE2): Email – Response for Long Call (3 Dec 2025)
- G5 (DEC1): Deadlock Email – Refusal of Safeguards (5 Dec 2025)

- SECTION H: Retaliatory Affidavit

- H1 (OA1): Respondent’s CCMA Opposing Affidavit (10 Dec 2025)
- H2 (RA1): Applicant’s Replying Affidavit (11 Dec 2025)

- SECTION I: Resulting Harm

- I1 (EVIC1): Eviction Notice
- I2 (SANC2): SANC Deregistration Notice
- I3 (PSY1): Psychological Impact Documentation
- I4: Proof of Medical Aid Loss

- SECTION J: Regulator Notifications

- J1 (REG1): JSE Acknowledgement
- J2 (REG2): B-BBEE Commission Submission
- J3 (REG3): FSCA Submission
- J4 (REG4): CMS Acknowledgement
- J5 (REG5): SAHRC Submission
- J6 (REG6): DEL Submission

- SECTION K: CCMA & Procedural Documents

- K1: Certificate of Non-Resolution (CCMA)
- K2: CCMA Referral Form (5 Dec 2025)
- K3: (NRE1): Notification of Regulator Escalation (26 Dec 2025)
- K4: (CCC1): Formal Complaint CCMA Acknowledgement (10 Jan 2026)

- SECTION L: Post-Resignation Obstruction

- L1 (EXIT1): Request for UI-19 & Exit Docs (7 Jan 2026)
- L2 (EXIT2): Follow-up Email to HR (14 Jan 2026)
- L3 (EXIT3): Notice of Statutory Non-Compliance (15 Jan 2026)
- L4 (CERT1): Certificate of Service & Objection (19 Jan 2026)
- L5: (NCD1): Demand for “Naming Convention” Meeting Recording
- L6: (PS3): Screenshot of Updated Tile Post Naming Convention
- L7: (KWA1): Notice of Intent: Irreversible Regulatory Filings
- L8: (SANC2): Urgent Notification of Professional Deregistration via Occupational Detriment